PLANNING EVIDENCE REVIEW

The Historic Horton Estate

A strategic evidence review of the evolution of the Historic Horton Estate

Prepared on behalf of

Oak Glade Management Limited

and

Cuddington Glade Management Limited

glade noun. *an open, grassy space; a clearing; a bright, sunny patch inside a forest or wood.*

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Written by

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Version history

Version	Description	Principal change
1	Initial draft	Structure established
2	Expanded evidence review	Topic chapters introduced
3	Additional planning analysis	Green Belt and cumulative-change analysis added
4	Comprehensive evidence portfolio	Full analytical content across sixteen chapters
5	Planning Evidence Review	Restructured as a restrained evidence review; methodology chapter introduced
6	Publication	Version 5 framework retained; Version 4 analysis restored; title transfers of 1998 to 2024 integrated; cumulative Green Belt analysis quantified; sequential-test and Condition 9 material added; duplication removed

Disclaimer and Basis of Preparation

This review has been prepared on behalf of Oak Glade Management Limited and Cuddington Glade Management Limited using information available in the public domain at the time of writing, together with official copies of registered title obtained from HM Land Registry.

The review draws upon published planning documents, the Local Plan evidence base, planning application material, national planning policy, publicly available technical reports and registered title documentation. It presents a structured review of that material and should be read in conjunction with the original source documents, which remain the definitive record.

The review does not determine planning applications, and it does not substitute for the professional judgement of the Local Planning Authority, the Local Plan Inspector or any other statutory decision-maker. Its function is to bring dispersed evidence together within a single reference document so that the planning issues associated with the Historic Horton Estate can be understood as a whole.

Observations recorded in this review are intended to assist informed consideration of the published evidence. They are not, and should not be relied upon as, legal advice, planning advice or advice on property rights. Where the review refers to registered titles and filed transfers, it describes what those documents record; it does not offer an opinion on their construction, effect or enforceability, which are matters for suitably qualified legal advisers.

Where areas, dimensions and quantities are quoted, they are taken from the published source identified in the accompanying text and have not been independently surveyed or verified.

Acknowledgements

The preparation of this review has benefited from the extensive planning documentation published by Epsom & Ewell Borough Council during the preparation of the emerging Local Plan and the determination of Planning Application 26/00002/FUL, and from the official copies of registered title and filed transfers supplied by HM Land Registry.

It also reflects the detailed local knowledge of the twenty-eight households of Oak Glade and Cuddington Glade, whose long-standing experience of the former Horton Hospital estate has informed the contextual narrative presented throughout.

How to Use this Review

This review is organised so that it can be read at three levels of detail.

- Readers seeking a concise overview should begin with the Executive Summary and the At a Glance summary that follows it.
- Readers concerned with a particular planning topic should turn directly to the relevant chapter. Each chapter opens with a snapshot panel identifying its purpose, the principal questions it addresses and the evidence it reviews, and each closes with a short set of key messages.
- Readers wishing to verify the underlying material should refer to the appendices, which schedule every published document reviewed, set out the chronology of the estate, and index the figures and mapping to be produced.

Three conventions are used consistently throughout.

- Published evidence is described in neutral terms and attributed to its source.
- Observations arising from the review are separately identified and are confined to the "Observations" and "Key messages" panels at the close of each chapter.
- Questions arising are recorded as questions, and are not presented as conclusions.

Four figures are included, each derived from published figures, dates or documented relationships, and each carrying a note of its limitations. The review does not reproduce mapping: where the extent or position of a feature is material, the text identifies the published plan on which it is shown. Appendix E explains this and records what further graphics would add.

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Figures and Tables

A consolidated index of every figure specified in this review is provided at Appendix E. Tables are numbered sequentially within each chapter.

Abbreviations

Abbreviation	Meaning
BNG	Biodiversity Net Gain
DAS	Design and Access Statement
EEBC	Epsom & Ewell Borough Council
FRA	Flood Risk Assessment
HMLR	HM Land Registry
HOR001	Proposed Local Plan allocation, subject of Planning Application 26/00002/FUL
HOR004	Proposed Local Plan residential allocation
LPA	Local Planning Authority
LVIA	Landscape and Visual Impact Assessment
MDS	Major Developed Site
NPPF	National Planning Policy Framework
PDL	Previously Developed Land
PPG	Planning Practice Guidance
SuDS	Sustainable Drainage Systems
TA	Transport Assessment
TP02	Green Belt Topic Paper — Exceptional Circumstances
TPO	Tree Preservation Order

Executive Summary

Purpose of this review

Most planning documents examine individual sites. This review examines the Historic Horton Estate as a single evolving landscape, within which HOR001 and HOR004 represent successive phases of change.

It has been prepared on behalf of Oak Glade Management Limited and Cuddington Glade Management Limited, and provides a structured review of the published planning evidence relating to Planning Application 26/00002/FUL (HOR001), made by Frontier Estates through its agent Nexus Planning, the proposed Local Plan allocation HOR004, and the Historic Horton Estate within the emerging Epsom & Ewell Local Plan.

That evidence is presently dispersed across a live planning application, a Local Plan evidence base running to many separate documents, national policy, examination material and registered title documentation. Each document is coherent on its own terms. No single document explains how they relate to one another. This review addresses that gap: it does not replace the Council's evidence, does not determine the merits of any proposal, and introduces no new technical assessment.

The Historic Horton Estate

The former Horton Hospital estate occupies a distinctive place within the planning history of Epsom & Ewell. Developed from the late nineteenth century as a single planned institutional landscape of five hospitals, it has since evolved through successive phases of disposal and redevelopment while retaining extensive areas of Metropolitan Green Belt, a mature landscape framework and, latterly, a series of established residential communities.

Today the estate comprises former hospital sites, residential neighbourhoods, woodland, open grassland and Green Belt, forming a coherent spatial framework that continues to influence planning decisions affecting the area. Although HOR001 and HOR004 arise through different statutory processes, both lie within this shared landscape and both form part of its continuing evolution.

The contribution of the registered title evidence

Version 6 of this review incorporates, for the first time, the registered title evidence for the land immediately surrounding the two sites: the Transfer dated 30 March 1998 from the Secretary of State for Health, the Transfer dated 17 June 2010 by which Cuddington Glade was disposed of by Surrey and Borders Partnership NHS Foundation Trust, the Transfer dated 14 February 2014 by which the Oak Glade land passed into private ownership, and the Transfer dated 16 August 2016 by which the Oak Glade estate roads, gardens and service media were vested in Oak Glade Management Limited.

Taken together, these documents record the parallel evolution of land ownership alongside the planning history already described in the published evidence. They explain how a single institutional estate was disposed of in stages; why the roads serving Oak Glade and Cuddington Glade are privately owned and privately managed rather than adopted highway; why rights of access and rights to connect into shared service media were expressly reserved for the benefit of land retained on each disposal; and why land ownership across the estate is today fragmented between several parties.

The transfers do not alter the planning policy framework, and nothing in this review suggests that they determine the outcome of either proposal. They are contextual evidence, not planning evidence. Their

value is that they supply the missing chapter in the history of the estate and explain the physical, legal and management context within which HOR001 and HOR004 fall to be considered.

Three ways to read this review

The review serves three related purposes, and each has a route through it.

Reader	Question	Route
Local Plan Inspector	Should the proposed Green Belt releases across the Horton estate be confirmed?	Why This Estate Matters, then Chapters 4, 5 and 13
Local Planning Authority	Should planning permission be granted at HOR001?	Chapters 4 (national tests), 6, 8, 9, 10, 11 and 12
The two communities, and future decision-makers	What would need to be assessed if HOR004 came forward?	Chapters 7, 9, 10, 11, 12 and 13

The relationship between the first two is direct. While HOR001 remains Green Belt, the care home proposal is inappropriate development and must demonstrate very special circumstances. If the Local Plan releases the site, that test falls away. The examination therefore substantially determines the framework within which the planning application is decided, which is why these residents are engaging at plan stage rather than waiting.

Principal observations

Five themes emerge from the published material.

First, the Historic Horton Estate remains the principal spatial and historical context for both proposals. Its defining characteristics — Metropolitan Green Belt, mature woodland, established communities and the transition between developed and undeveloped land — remain central to understanding them.

Secondly, the evidence for the two sites was prepared for different statutory purposes and sits at different levels of detail. HOR001 is supported by site-specific technical assessment; HOR004 by strategic evidence. That is a difference of function rather than quality, but it bears directly on what can presently be concluded about each.

Thirdly, the published evidence records a reversal in the Council's own position. The site assessment work published in December 2024 concluded that neither site demonstrated the exceptional circumstances required for release, and warned of the slow erosion of small Green Belt areas. The current evidence proposes both for release. The sites themselves are unchanged; national planning policy is not. The review records the reversal, records the Council's entitlement to make it, and records that the site-specific reasoning connecting the two positions has not been identified.

Fourthly, the Council's own arithmetic shows that approximately 40.3% of the 204.29-hectare historic estate is proposed for removal from the Green Belt through revised inset boundaries, with HOR001 and HOR004 additional to that. Each element is assessed separately. We have not found any published document that assesses them together.

Fifthly, the registered title evidence demonstrates that the estate evolved through successive part-disposals rather than comprehensive redevelopment, and that each phase was designed to rely on

infrastructure inherited from the phase before it. That provides a documented basis for the cumulative analysis in Chapter 5 which the planning documents alone do not supply.

At a Glance

This review provides a structured, evidence-based review of the published planning material relating to:

- HOR001 — proposed three-storey, 70-bed care home, the subject of Planning Application 26/00002/FUL;
- HOR004 — proposed residential allocation of approximately fifty dwellings;
- the emerging Epsom & Ewell Local Plan; and
- the Historic Horton Estate within which both sites lie.

The question that frames the review

> **FRAMING QUESTIONS**
>
> First: should this land be released from the Metropolitan Green Belt at all, given that the Council concluded in December 2024 that neither site demonstrated the exceptional circumstances required?
>
> Second: has the cumulative effect of the proposed Green Belt changes across the Historic Horton Estate been assessed in a single, transparent and publicly available form?

These questions provide the framework for the review. They are explored through the published evidence rather than answered in advance of it.

The estate in figures

Measure	Published figure
Total historic estate (five former hospital sites)	204.29 ha
Previously developed land	87.63 ha (42.9%)
Natural environment	116.66 ha (57.1%)
Proposed Major Developed Site insets	82.27 ha
Proportion of the historic estate proposed for removal from the Green Belt	40.3%
HOR001 — additional proposed release	approximately 0.52 ha
HOR004 — additional proposed release	approximately 1.11 ha
Green Belt parcels identified across the wider Horton corridor	approximately 18
Households represented by the commissioning parties	28

Source: Epsom & Ewell Borough Council Green Belt evidence base and Submission Local Plan. Percentages as published by the Council. See Chapter 5.

The chain of title in outline

Date	Transfer	Effect
30 March 1998	Secretary of State for Health to Surrey	Transfer of the hospital estate within the

Date	Transfer	Effect
	Heartlands NHS Trust	National Health Service, subject to restrictive covenants and provisions as to light and air
8 April 2004	Surrey Oaklands NHS Trust to Sichere Building Services Limited	Disposal of Manor Lodge with reciprocal rights
17 June 2010	Surrey and Borders Partnership NHS Foundation Trust to Countrywide Design (Epsom) Limited	Disposal of the Cuddington Glade land for £2,700,000, with rights of way and services granted, and rights of access, services and future development reserved over the retained land
14 February 2014	Surrey and Borders Partnership NHS Foundation Trust to Java Asset Management Limited	Disposal of the Oak Glade land, subject to restrictive covenants and excluding section 62 of the Law of Property Act 1925
16 August 2016	Java Asset Management Limited to Oak Glade Management Limited	Vesting of the Oak Glade estate roads, estate gardens and service media in the residents' management company, with rights of way and connection reserved for the retained land

Source: official copies of the registers of titles SY838750, SY818290, SY788683 and SY677003 and the filed transfers referred to in them. See Chapter 2 and Appendix F___TMP.

What the review examines

- Green Belt policy and the Council's published Green Belt evidence
- Planning history and the parallel evolution of land ownership
- Cumulative Green Belt change across the Horton corridor
- HOR001 — the proposed care home
- HOR004 — the proposed residential allocation
- Highways, transport and accessibility
- Landscape character, visual impact and openness
- Ecology, biodiversity and trees
- Residential amenity and community impact
- Infrastructure, utilities and community services
- Integrated planning considerations

Principal findings

WHAT THE REVIEW FOUND

- The Local Plan proposes to remove approximately 40.3% of the 204.29-hectare historic Horton Hospital estate from the Metropolitan Green Belt through revised Major Developed Site inset boundaries. HOR001 and HOR004 are additional to that figure. Each element is assessed separately; we have not found any published document that assesses them together.
- In December 2024 the Council concluded that neither HOR001 nor HOR004 demonstrated the exceptional circumstances required for release, and warned that releasing parcels of this kind would cause the "slow ebbing away of small areas of Green Belt". The current evidence proposes both for release.
- The physical characteristics of both sites are unchanged: their area, their contribution to openness, their protected trees, their semi-natural grassland and their relationship with Epsom Common.

National policy has changed materially; the sites have not.

- Both proposals depend on the same shared private access road: approximately 5.5 metres wide, not adopted highway, laid out to serve twenty-eight households, and maintained at the residents' expense. No published assessment of their combined effect upon it has been identified.
- Parking for the proposed 70-bed care home is assessed in representations at 51 to 59 spaces under county standards, rising to 60 to 70 at shift handover. Twenty on-site spaces are proposed, together with eight in land owned by Oak Glade Management Limited.
- In 2015 a single dwelling on adjoining Green Belt land was refused as inappropriate development. A three-storey, 70-bed institution operating continuously is now characterised as the "natural rounding off" of the same built edge.

Wider observations

OBSERVATIONS ARISING FROM THE REVIEW

- The Historic Horton Estate should be understood as a single evolving planning landscape rather than as a collection of unrelated sites.
- HOR001 and HOR004 warrant consideration both individually and within that wider strategic context.
- The Council has produced an extensive evidence base addressing each proposal on its own terms.
- Cumulative landscape and infrastructure change provides an important additional perspective alongside the individual site assessments.
- The registered title evidence explains why the estate is served by privately owned and privately managed infrastructure, and why that infrastructure is shared between successive phases of development.

Why This Estate Matters

Most planning documents examine individual sites. This review examines the Historic Horton Estate as a single evolving landscape, within which HOR001 and HOR004 represent successive phases of change.

The former Epsom Cluster hospitals form one of the most significant historic institutional landscapes in Surrey. Between the late nineteenth century and the early twentieth, five psychiatric hospitals were built to the west of Epsom as a coordinated group, set within extensive designed grounds. They were not five separate projects. They were one landscape, planned as a whole, served by shared roads and shared services.

That landscape survives. It extends to 204.29 hectares — larger than many of the Borough's villages — and every hectare of it remains designated Metropolitan Green Belt. Roughly three-fifths is classified in the Council's own evidence as natural environment rather than developed land. It adjoins Epsom Common, with its Site of Special Scientific Interest and Ancient Woodland, and it carries the woodland belts, avenues and open grassland laid out more than a century ago.

Since the hospitals closed, the estate has been released in stages: West Park, Manor Park, Livingstone Park, Clarendon Park and St Ebba's, redeveloped one at a time across some twenty-five years. Each phase built into the framework left by the phase before it, inheriting its roads, its drainage and its landscape structure. The transfers examined in Chapter 2 record that this was deliberate: on each disposal, rights of access and rights to connect into shared services were expressly granted and reserved so that the parts could continue to function as a whole.

The result is a landscape that is neither urban nor rural, in which established residential communities sit within a surviving institutional framework, and in which the boundary between built form and open countryside is unusually legible. Twenty-eight households at Oak Glade and Cuddington Glade occupy one edge of it.

WHY IT MATTERS NOW

- The Local Plan proposes to remove approximately 40.3% of this estate — 82.27 hectares — from the Metropolitan Green Belt through revised Major Developed Site inset boundaries.
- Two further allocations, HOR001 and HOR004, would remove additional Green Belt land immediately adjoining it.
- Each of those changes is assessed separately, in different documents, through different processes, against different tests.
- No published document assesses what they amount to together.

That is the gap this review addresses. The planning system is designed to examine sites, and it examines them well. But a landscape released in fragments is still released, and the case for each fragment is always easier to make than the case for the whole. The Council itself identified the risk in its published evidence when it warned of the "slow ebbing away of small areas of Green Belt".

This review therefore takes the estate, rather than the site, as its unit of analysis. It does not argue that any individual proposal is unacceptable. It argues that a change of this scale to a landscape of this significance should be understood, and assessed, as one question.

Chapter 1 Methodology and Purpose

CHAPTER SNAPSHOT

Purpose

To explain the purpose and scope of this review, the sources on which it is based, the method by which the published evidence has been examined, and the conventions used to distinguish evidence from observation.

Principal questions addressed

- What is this review for, and what is it not for?
- What material has been reviewed, and how was it obtained?
- How are published evidence, analysis and observation distinguished?
- What are the acknowledged limitations of the review?

Principal evidence reviewed

- Epsom & Ewell Local Plan evidence base
- Planning Application 26/00002/FUL and supporting documents
- National Planning Policy Framework and Planning Practice Guidance
- Official copies of registered title and filed transfers, HM Land Registry

1.1 Purpose

This review has a single purpose: to make the published planning evidence relating to HOR001, HOR004 and the Historic Horton Estate intelligible as a whole.

That evidence is extensive and, at present, dispersed. It is distributed across a live planning application, a Local Plan evidence base running to many separate documents, national policy, consultation responses, examination hearing material and registered title documentation held by HM Land Registry. Each document was prepared for its own purpose and is entirely coherent when read on its own terms. The difficulty for the reader is that no single document sets out how these strands relate to one another.

This review addresses that difficulty. It does not seek to determine either proposal, to substitute for the Council's evidence, or to advance an independent technical assessment. It reviews what has been published, explains what it says, and identifies the themes that emerge when the material is read together.

1.2 Scope

The review covers the published evidence available at the time of writing in relation to the topics listed in the Executive Summary. Three boundaries to that scope should be stated at the outset.

This is a review of published material. It does not commission or rely upon original survey work, traffic counts, ecological survey, arboricultural inspection or landscape appraisal. Where the published evidence records a technical finding, the review records that finding and its source.

It is not a legal opinion. Chapter 2 describes what the registered titles and filed transfers record. It does not express a view on the construction, effect, enforceability or priority of any right, covenant or reservation. Those are matters for suitably qualified legal advisers and, if necessary, for the courts.

It does not extend to matters outside the planning system. Questions of private property rights, service charge liability and estate management are relevant to this review only insofar as they explain the physical and management context in which planning decisions will operate.

1.3 Sources

The material reviewed falls into five groups.

- National planning policy: the National Planning Policy Framework and the relevant sections of Planning Practice Guidance.
- Local Plan evidence: the submission Local Plan and policies map, the Sustainability Appraisal and its addenda, the Infrastructure Delivery Plan, site assessment material, the Green Belt Topic Paper and its addendum, the Green Belt Study Update and technical notes, and post-hearing evidence.
- Planning application material: the documents submitted with, and published in respect of, Planning Application 26/00002/FUL, including the Transport Statement and associated road safety audit, landscape and arboricultural material, drainage and ecological evidence, and the submitted plans.
- Examination material: representations, hearing statements and post-hearing actions published in connection with the Local Plan Examination.
- Registered title evidence: official copies of the registers of titles SY838750, SY818290, SY788683 and SY677003, together with official copies of the filed transfers dated 30 March 1998, 17 June 2010, 14 February 2014 and 16 August 2016, and associated title plans.

A complete schedule of the documents reviewed is provided at Appendix A. The registered title material is scheduled separately at Appendix F___TMP, together with the chain of title it evidences.

1.4 Method

The work was carried out in four stages.

1. Assembly. All published material relating to the two sites and the wider estate was collected and catalogued by source and date, so that the sequence in which evidence was produced could be established.
2. Reading by topic. The material was then re-read by planning topic rather than by document, so that all evidence bearing on, for example, Green Belt openness or highway capacity could be considered together irrespective of the document in which it appeared.
3. Reconciliation. Where documents addressed the same matter, they were compared. Differences of conclusion, of date, or of level of detail were recorded. Where a difference could be explained by the different statutory purpose of the documents, that explanation is given.
4. Contextual review. Finally, the registered title evidence was examined to establish the ownership history of the estate and the private infrastructure serving it, and to test whether that history assists in explaining the physical and management context described in the planning documents.

1.5 Conventions

Three conventions are applied consistently.

Published evidence is described neutrally and attributed. Where the review states what a document says, it says so and identifies the document.

Observations are separately identified. Where the review draws an inference from the evidence, that inference appears in an "Observations" or "Key messages" panel and is expressed as an observation, not as a finding of fact.

Questions are recorded as questions. Where the review identifies a matter on which the published evidence appears incomplete or where two published documents reach different conclusions, that matter is recorded as a question for the decision-maker rather than resolved by this review.

It also adopts a deliberate register. It does not assert that the Council has failed to do something; it records what the published evidence does and does not address. It does not report what residents believe; it records what representations submitted through the statutory process state. That discipline is intended to allow the evidence, rather than the author, to lead the reader.

1.6 Limitations

Four limitations should be borne in mind throughout.

- The evidence base is live. The Local Plan is at examination and the planning application is undetermined. Material published after the date of this review is necessarily not reflected in it.
- The two proposals sit at different stages. HOR001 is supported by detailed technical evidence; HOR004 is supported by strategic evidence only. Comparisons between them must allow for that difference.
- The review is desk-based. Site conditions are described from the published evidence and from the commissioning parties' knowledge of the locality, not from independent survey.
- The title evidence is descriptive. It records the position shown by the registers and filed transfers examined. Registers are subject to amendment, and unregistered interests and pending applications will not appear on them.

KEY MESSAGES

- This document consolidates published evidence; it does not create new evidence.
- Its function is explanatory, not adjudicative.
- Evidence, analysis and observation are separately identified throughout.
- The registered title material is used as contextual evidence of how the estate evolved, not as planning evidence bearing on the merits of either proposal.

Chapter 2 The Historic Horton Estate: Landscape and Ownership

CHAPTER SNAPSHOT

Purpose

To explain the origins, physical characteristics and planning significance of the Historic Horton Estate, and — for the first time in this series of reviews — the parallel evolution of its ownership, so that the spatial context within which HOR001 and HOR004 are considered is established in both landscape and land-holding terms.

Principal questions addressed

- What is the Historic Horton Estate, and why should it be treated as a coherent planning landscape?
- How has the estate evolved physically, and how has it evolved in ownership?
- Why are the roads and services serving Oak Glade and Cuddington Glade privately owned?
- Why does that context matter to the assessment of current proposals?

Principal evidence reviewed

- Local Plan evidence base and Green Belt Topic Paper (TP02)
- Post-hearing Green Belt evidence and the Green Belt Study Update
- Historic mapping and planning records
- Official copies of registers SY838750, SY818290, SY788683 and SY677003
- Filed transfers dated 30 March 1998, 17 June 2010, 14 February 2014 and 16 August 2016

2.1 Introduction

The planning issues examined in this review extend beyond any single application or allocation. They relate to the continuing evolution of the Historic Horton Estate: an extensive area of Metropolitan Green Belt that has undergone profound change over more than a century while retaining a strong spatial and historical identity.

Understanding that estate is fundamental to understanding the planning context of HOR001 and HOR004. Neither site is an isolated parcel of land. Both form part of a much larger landscape whose character was shaped first by institutional development, then by phased residential redevelopment, and throughout by the long-standing protection of substantial areas of open Green Belt.

This chapter establishes that context in two dimensions. The first — the physical and planning evolution of the landscape — has been described in earlier versions of this review and in the Council's published evidence. The second — the evolution of ownership — is described here for the first time, on the basis of official copies of registered title obtained from HM Land Registry. The two dimensions are complementary: the ownership history explains a good deal about the physical arrangement of the estate that the planning history alone does not.

2.2 Origins of the estate

The Horton Hospital estate was created during the late nineteenth and early twentieth centuries as one of the largest planned psychiatric hospital complexes serving London. Five principal hospitals formed the estate:

- West Park Hospital

- Manor Hospital
- Horton Hospital
- Long Grove Hospital
- St Ebba's Hospital

Although each institution operated independently, they were conceived as elements of a single planned landscape characterised by generous open space, mature woodland, tree-lined avenues, agricultural land and interconnected infrastructure. Buildings, transport routes, landscape design and open space formed an integrated environment reflecting contemporary principles of institutional planning.

Two features of that original conception have proved unusually durable. The first is the landscape framework itself, much of which survives. The second is the pattern of shared infrastructure: roads, drainage, water and power were laid out to serve the estate as a whole rather than to serve individual parcels. That characteristic, established more than a century ago, remains directly relevant to the matters considered in Chapters 8 and 12.

2.3 Physical evolution of the landscape

The closure of the hospitals initiated one of the largest regeneration programmes in the Borough. Rather than comprehensive redevelopment of the entire estate, planning decisions generally focused on the reuse of previously developed land while retaining significant areas of open landscape.

Former hospital sites evolved into established residential communities including Manor Park, Livingstone Park, Clarendon Park, and parts of the former West Park and St Ebba's estates. Extensive areas of woodland, open space and Green Belt were retained around and between them.

The resulting environment is neither wholly urban nor wholly rural. It is a distinctive transitional landscape in which residential neighbourhoods coexist with substantial areas of protected open land, preserving much of the spatial character established during the original development of the estate.

2.4 The scale of the estate

The Council's published evidence identifies the historic Horton Hospital estate as extending to approximately 204.29 hectares.

Land category	Area
Previously developed land	87.63 ha
Natural environment	116.66 ha
Total historic estate	204.29 ha
Revised Major Developed Site insets	82.27 ha

Table 2.1 — The historic estate in area terms. Source: Epsom & Ewell Borough Council Local Plan evidence base.

These figures record that, notwithstanding extensive redevelopment, a substantial majority of the historic estate remains undeveloped and continues to contribute to its Green Belt character. The scale of that remaining open land is an important feature of the planning context and provides the backdrop against which the current proposals fall to be understood.

2.5 The evolution of ownership

Alongside its physical evolution, the estate has undergone an equally significant transformation in ownership. That transformation is recorded in the registers of title and the filed transfers referred to in them, official copies of which have been obtained for this review.

The pattern that emerges is one of progressive disposal in stages rather than a single comprehensive transaction. At each stage, land was sold out of a larger holding; land was retained; and rights were expressly granted and reserved so that the part sold and the part retained could continue to function together.

The 1998 transfer

The register for title SY838750 records a Transfer dated 30 March 1998 made between the Secretary of State for Health and Surrey Heartlands National Health Service Trust. The transfer contains restrictive covenants and provisions as to light and air, and excludes the operation of the relevant Land Registration Rules provision then in force. It is the earliest transfer in the chain examined for this review, and it marks the point at which the estate began to be dealt with as a series of holdings rather than as a single institutional whole.

The 2010 transfer — Cuddington Glade

By a Transfer dated 17 June 2010, Surrey and Borders Partnership NHS Foundation Trust sold the Cuddington Glade land to Countrywide Design (Epsom) Limited for £2,700,000, retaining the remainder of the title as "Retained Land".

The transfer then made careful provision for how the part sold and the part retained would continue to function together. The land sold was granted a right of way over a defined accessway, shared with the Trust, conditional upon paying a fair and proper proportion of the cost of maintaining and lighting it "according to use"; together with rights to connect into existing services, subject to consent which could be withheld if the existing apparatus would be overloaded. The Trust in turn reserved rights of access and services over the land sold, and — significantly — an express right to develop the retained land, supported by a covenant that the purchaser would do nothing to interfere with or delay that development.

The parties also agreed that no rights beyond those expressly written into the deed would pass. Nothing was left to implication. The full schedule of rights, reservations and covenants, with the relevant legal citations, is set out at Appendix E___TMP.

The 2014 transfer — Oak Glade

By a Transfer dated 14 February 2014, the same Trust sold the Oak Glade land to Java Asset Management Limited, subject to restrictive covenants and again excluding rights that would otherwise have passed by implication. This is the point at which the Oak Glade land left National Health Service ownership ahead of its residential redevelopment.

The 2016 transfer — the Oak Glade estate infrastructure

By a Transfer dated 16 August 2016, registered on 22 August, Java Asset Management Limited transferred land at Oak Glade to Oak Glade Management Limited for a stated value of £150,000, creating title SY838750.

What passed was the shared physical fabric of the estate: the estate roads — defined as all roads, verges and footpaths including their lighting — together with the estate gardens, the estate sewers and the service media serving the development. What was reserved was equally deliberate: for the benefit of the land the

transferor retained, a right of way over the estate roads with or without vehicles, and the right to use and connect into the service media on the estate.

The effect was to vest the shared infrastructure of Oak Glade in a management company owned by and accountable to its residents, while expressly preserving the ability of the retained land to pass over those roads and connect into those services.

A letter from HM Land Registry dated 31 January 2017, filed with the transfer, confirms that the retained land was excluded from the new title, as the deed intended.

The 2024 transfer — the surrounding land

The register for title SY818290 — the parent title from which both the Oak Glade plots and the estate infrastructure were carved — records a further transfer. On 11 April 2024 the title passed to Oak Glade Epsom Limited (company number 15517601, incorporated 23 February 2024), at an address given on the register as Montreaux House, The Hythe, Staines-upon-Thames. The price stated to have been paid was £1.

SY818290 comprises the land wrapping to the south and east of Oak Glade, extending towards Christ Church Road. It is therefore the title within which the HOR001 site falls, and it adjoins the HOR004 allocation.

For completeness, the review records that the 2016 transfer was executed on behalf of both parties by the same director, David Burke, signing for Java Asset Management Limited as transferor and for Oak Glade Management Limited as transferee. That is an ordinary feature of a developer-controlled management company before handover to residents, and no inference adverse to any party is drawn from it. It is recorded because it explains the continuity of control across the transactions described in this chapter.

The extent of the rights reserved in 2016

The extent of the land benefiting from those reserved rights warrants particular attention, because it is easily overlooked.

The transfer defines the "Retained Land" as the land edged red on the transfer plan. The plan issued by HM Land Registry with its letter of 31 January 2017 identifies the same land by brown tint. It is a small area — of the order of twenty metres by eight metres — at the northern edge of the estate adjoining Cuddington Glade, corresponding to a block of parking spaces which was not sold with any house. Consistently with this, the property register of title SY818290 records that the land tinted pink on that title plan has the benefit of the easements reserved by the 2016 transfer: a defined part of the title rather than the whole of it.

WHAT FOLLOWS FROM THIS

- The right of way over the Oak Glade estate roads, and the right to connect into the estate service media, were reserved for the benefit of that block of parking spaces.
- They were not reserved for the benefit of the land to the south within which the HOR001 site falls.
- Whether a right of way reserved for the benefit of one parcel may be exercised so as to serve development on separate land is a question of law considered further at Chapter 8. This review expresses no view upon it.
- The measurements stated above are derived from the plans identified and should be confirmed by measurement from an official copy before they are relied upon.

It should also be recorded precisely what the 2016 reservation does and does not confer. The right reserved is a right of way to pass, with or without vehicles, over the estate roads and roadway, together with a right to use and connect into existing service media. A right to pass is not a right to park, and the transfer contains no reservation of any right to park on the estate.

The information given to purchasers

The information package issued to prospective purchasers of the Oak Glade houses in August 2015 records the arrangement then intended. It states that the management company would be responsible for the upkeep of the private road and common parts including verges and lighting; that residents would assume control of the management company on completion of the last house sale; and that the seller would transfer ownership of the remainder of the estate to the management company at that point, while retaining rights of way over the road and rights of services to its retained land at the rear.

The same document records that the seller had reserved the right to continue building on the estate without objection from the purchasers of the houses, and refers to the refusal in August 2015 of permission for an additional dwelling.

The review records these statements because they describe the arrangement as it was represented at the point of sale. Whether the transfer of the remainder of the estate to the management company took the form then described is a matter that the registers alone do not resolve.

The register entries in summary

The register for title SY838750 records the practical consequence of this history. The estate roads are subject to rights of way granted by transfers of adjoining land forming part of the Oak Glade estate; the estate footpaths are subject to rights of way on foot; the estate gardens are subject to rights of user; and the land is subject to rights of drainage and to rights in respect of the supply of water, gas, electricity and other services granted by transfers of land forming part of the estate. Corresponding rights of entry for inspection and maintenance are reserved in favour of the estate.

The registers record the present pattern of ownership across the principal titles examined:

Title	Land	Registered proprietor	Last recorded consideration
SY838750	Land at Oak Glade — estate roads, verges, footpaths, lighting, gardens and service media	Oak Glade Management Limited	£150,000 (16 August 2016)
SY818290	Land at Oak Glade extending south and east, within which the HOR001 site falls	Oak Glade Epsom Limited	£1 (11 April 2024)
SY788683	Land at Cuddington Glade, Christ Church Road	Epsom Projects Limited	£38,000 (7 August 2013)
SY677003	1 to 9 (inclusive) Ethel Bailey Close	Bailey Gardens (Epsom) Management Company Limited	No price recorded
SY837681	Land adjoining Manor Lodge, Christ Church Road	Private individual	£60,000 (5 October 2015)
SY735512	Land on the east side of Horton Lane	The Secretary of State for Health	No price recorded

Title	Land	Registered proprietor	Last recorded consideration
Individual plots	The fifteen houses at Oak Glade, each with its allocated parking spaces	Individual householders	Various (2016 onwards)

Table 2.2 — Ownership across the registered titles examined. Source: HM Land Registry register entries as at July 2026. Registers are subject to amendment; pending applications are not shown.

Two features of that pattern are worth drawing out. Part of the historic estate has never left public ownership: title SY735512, on the east side of Horton Lane, remains vested in the Secretary of State for Health. And the land retained by the National Health Service on the 2010 disposal has itself since been developed and vested in a second residents' management company at Ethel Bailey Close. The estate has therefore continued to subdivide in the same incremental pattern throughout the period covered by this review.

2.6 The landscape today

The estate today comprises a mosaic of residential neighbourhoods, institutional legacy, mature woodland, open grassland and Metropolitan Green Belt. Its principal characteristics include:

- established residential communities created through the redevelopment of former hospital sites;
- extensive mature tree cover and woodland belts, including protected trees;
- interconnected areas of Green Belt and open landscape;
- surviving elements of the original estate layout, including its road and footpath structure;
- a clear visual transition between built development and open countryside; and
- shared infrastructure inherited from the institutional estate and now largely in private ownership.

Oak Glade and Cuddington Glade occupy a distinctive position within this landscape, forming part of the southern and eastern edge of the former Manor Hospital estate where residential development gives way to open Green Belt and to Epsom Common beyond. Together the two communities comprise twenty-eight households. Vehicle parking is contained within grouped parking courts rather than on individual driveways, with the consequence that there is little vehicle movement within the communities themselves.

2.7 Why the estate matters in planning terms

Planning decisions are made on individual applications and individual allocations. Strategic planning, however, also requires an appreciation of how individual decisions contribute to the evolution of a wider landscape. The Historic Horton Estate provides precisely such a context.

Its shared planning history, its extensive Green Belt designation and its interconnected pattern of redevelopment mean that change affecting one part of the estate may influence the character and functioning of the wider area. Considering that broader context does not displace the detailed assessment of individual proposals; it complements it.

The ownership history adds a further dimension. Because the estate was disposed of in stages rather than redeveloped comprehensively, each phase of development was designed to rely, in whole or in part, on infrastructure inherited from the phase before it — and each disposal expressly reserved the rights necessary to allow that to continue. The physical interdependence of the estate is therefore not incidental. It is documented, and it was deliberate.

2.8 What the title evidence does not show

It is as important to state what the registered title evidence does not establish as to state what it does. The review is clear on this point, and it is repeated in each chapter in which the transfers are relied upon.

THE TITLE EVIDENCE DOES NOT SHOW THAT:

- HOR001 or HOR004 is unlawful, or that either proposal cannot proceed;
- any party lacks the rights of access necessary to bring forward development;
- the planning application should be refused, or the allocation resisted, by reason of the transfers;
- the planning policy framework is altered in any respect by the existence of the transfers.

Indeed, in one important respect the title evidence points the other way: the 2010 transfer expressly reserved to the transferor and its successors the right to develop the retained land, and the 2016 transfer expressly reserved rights of way and connection for the benefit of retained land. Development of retained land was contemplated at the time of each disposal, and this review does not suggest otherwise.

Two limits on that point should be recorded with equal precision.

First, a right reserved between private parties is not a planning permission. It determines what one landowner may do as against another. It says nothing about whether development is acceptable in planning terms, whether Green Belt policy is satisfied, or whether exceptional circumstances exist. A reserved right to develop and a grant of planning permission are different instruments answering different questions, and the former does not anticipate the latter.

Secondly, the rights reserved were calibrated to the estate as it then stood. The accessway over which rights were granted in 2010 served two small residential communities, and contribution to its repair, maintenance, lighting and renewal was to be assessed "according to use". The right to connect into shared service media was made subject to consent, which the transferor could withhold where the media would be overloaded. The transfers therefore contemplate development in principle; they contemplate no particular scale of development, they contain no assessment of what the shared infrastructure can carry, and they expressly anticipate that capacity might prove to be a limit.

The value of the transfers to this review is accordingly contextual. They explain how the estate came to be arranged as it is, why its infrastructure is shared and privately held, and why questions of access, servicing and long-term maintenance recur throughout the published planning evidence. They are the missing chapter in the history of the estate, and they are used in that capacity alone.

KEY MESSAGES

- The Historic Horton Estate remains a coherent planning landscape with a distinctive historical and spatial identity.
- Significant areas of Metropolitan Green Belt continue to define its character notwithstanding substantial redevelopment.
- The estate evolved through successive part-disposals — in 1998, 2010, 2014, 2016 and 2024 — rather than through comprehensive redevelopment.
- Each disposal granted and reserved rights of access and services, with the result that the roads and service media serving Oak Glade and Cuddington Glade are privately owned, privately managed and

shared between phases.

- The rights reserved in 2016 benefit a defined, tinted part of title SY818290 rather than that title as a whole, and confer a right to pass rather than a right to park.
- HOR001 and HOR004 should be understood as components of this wider landscape as well as individual planning proposals.
- The title evidence is contextual. It does not bear on the lawfulness or planning merits of either proposal.
- The estate view: ownership has fragmented in the same incremental pattern as the land itself, and for the same reason.

Chapter 3 Planning History and Estate Evolution

CHAPTER SNAPSHOT

Purpose

To explain how successive planning decisions and successive land transactions have shaped the Historic Horton Estate, and to establish the chronological context within which HOR001, HOR004 and the emerging Local Plan should be understood.

Principal questions addressed

- How has the estate evolved through the planning system?
- What role has Green Belt policy played in that evolution?
- How do previous planning decisions provide context for the current proposals?
- How does the emerging Local Plan represent the next stage in that evolution?

Principal evidence reviewed

- Historic planning permissions and Council planning records
- Planning Application 15/00422/FUL
- Local Plan evidence base and Green Belt Topic Paper (TP02)
- Filed transfers dated 30 March 1998, 17 June 2010, 14 February 2014 and 16 August 2016

3.1 Introduction

The Historic Horton Estate has never been static. Over more than a century it has evolved through successive phases of institutional development, healthcare reform, land disposal, residential regeneration and strategic planning. Each stage altered parts of the estate while leaving others largely unchanged, producing the distinctive pattern of development and open land that exists today.

Understanding this history provides essential context for the proposals considered later in this review. HOR001 and HOR004 are not isolated planning events. They represent the latest stage in the continuing evolution of a landscape whose development has long been guided by planning policy, Green Belt protection and the phased regeneration of former hospital land.

3.2 From institutional estate to residential communities

The closure of the Horton hospitals created one of the Borough's most significant redevelopment opportunities. Rather than pursuing comprehensive redevelopment across the whole estate, planning decisions generally followed a consistent strategy:

- redevelopment concentrated on previously developed land;
- retention of substantial areas of open landscape;
- conservation of mature woodland and landscape features;
- protection of Green Belt openness; and
- creation of new residential neighbourhoods within the historic framework of the estate.

That approach enabled significant regeneration while preserving many of the landscape qualities that continue to define the area. It also had a second, less frequently observed consequence: because development proceeded parcel by parcel, each new neighbourhood was built into an existing framework of roads, drainage and services rather than being provided with a wholly new one.

3.3 The parallel chronology

The planning history and the ownership history are best read together. The following chronology sets out the principal events in both sequences.

Date	Event	Type
Late 19th – early 20th century	Establishment of the five Horton hospitals as a single planned institutional landscape	Estate
1940	Land charge registered against the estate land	Title
1973	First registration of the principal titles at HM Land Registry	Title
Late 20th century	Progressive closure of the hospitals following changes in healthcare policy	Estate
30 March 1998	Transfer from the Secretary of State for Health to Surrey Heartlands NHS Trust, with restrictive covenants and provisions as to light and air	Title
8 April 2004	Transfer of Manor Lodge from Surrey Oaklands NHS Trust to Sichere Building Services Limited	Title
17 June 2010	Transfer of the Cuddington Glade land from Surrey and Borders Partnership NHS Foundation Trust to Countrywide Design (Epsom) Limited for £2,700,000, with rights of way, services and future development reserved over the retained land	Title
2014	Planning permissions granted in respect of the Oak Glade development	Planning
14 February 2014	Transfer of the Oak Glade land from Surrey and Borders Partnership NHS Foundation Trust to Java Asset Management Limited	Title
2015	Refusal of Planning Application 15/00422/FUL for a dwelling on adjoining Green Belt land	Planning
16 August 2016	Transfer of the Oak Glade estate roads, gardens and service media to Oak Glade Management Limited, with rights of way and connection reserved for the retained land	Title
31 January 2017	HM Land Registry confirms registration, excluding the "Retained Land" from the management company's title	Title
11 April 2024	Transfer of title SY818290 — the land south and east of Oak Glade within which the HOR001 site falls — to Oak Glade Epsom Limited for a stated £1	Title
December 2024	Council site assessment concludes that neither HOR001 nor HOR004 demonstrates exceptional circumstances for release from the Green Belt	Planning
1 October 2025	Matter 4 (Green Belt) hearing. The Inspector identifies shortcomings in Section 4 of the Green Belt Topic Paper (TP02) and requires further work on the site assessments, together with additional information demonstrating compliance with the sequential requirement of national policy	Examination
Late 2025	Council prepares the Post Hearing Action Note (HD4_1), approved by the Inspector for publication in the Examination Library	Examination
11 May – 15 June	Consultation on the Green Belt Topic Paper Update, prepared	Examination

Date	Event	Type
2026	following the revised methodology	
2 July 2026	Hearing session at which Oak Glade Management Limited and Cuddington Glade Management Limited present their joint statement	Examination
13 July 2026	Council response, via the Programme Officer, to queries concerning the revised methodology; further query submitted the same day seeking identification of the underlying evidence for HOR001 and HOR004	Examination
2026	Submission of Planning Application 26/00002/FUL for a 70-bed care home at HOR001	Planning

Table 3.1 — Parallel chronology of planning and title events. Planning events are drawn from the Council's published records; title events from the registers and filed transfers examined for this review.

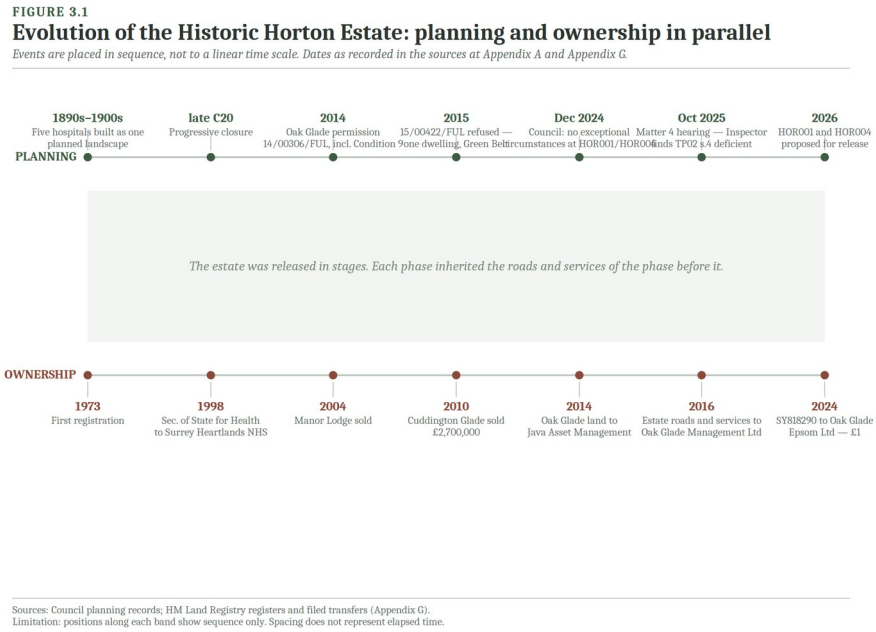


Figure 3.1 — Evolution of the Historic Horton Estate: planning and ownership in parallel *Sequence only; spacing does not represent elapsed time.*

3.4 The role of Green Belt policy

Throughout the redevelopment of the estate, Metropolitan Green Belt policy has remained a central planning consideration. Although national and local policy have both evolved, the fundamental objectives of Green Belt designation have remained consistent: maintaining openness, checking unrestricted sprawl, safeguarding the countryside from encroachment, and providing certainty as to the long-term pattern of development.

The retained Green Belt surrounding the redeveloped hospital sites has therefore continued to perform an important strategic and environmental function, and the relationship between redevelopment and Green Belt protection has significantly influenced the character of the landscape described in Chapter 2.

3.5 Major Developed Sites

A significant feature of the planning history has been the designation of parts of the former hospital estate as Major Developed Sites. The Major Developed Site approach recognised that substantial redevelopment

could take place within defined areas of previously developed land while the surrounding Green Belt remained protected.

This mechanism played an important role in facilitating regeneration while retaining the broader landscape framework that characterises the estate today. Subsequent revisions to those inset boundaries form part of the evidence considered through the emerging Local Plan and are reviewed in Chapter 4.

3.6 Previous planning decisions

The planning history includes a number of decisions that have shaped the current landscape. Of particular relevance is Planning Application 15/00422/FUL, by which permission was refused in 2015 for a single dwelling on Green Belt land adjoining Oak Glade, on the basis that it constituted inappropriate development within the Green Belt.

That decision has become a recurring reference point in representations and hearing statements submitted in connection with both the planning application and the Local Plan. Every application falls to be determined on its own merits, and the 2015 decision does not predetermine the outcome of any later proposal. It is, however, part of the published planning history, and it assists in understanding how Green Belt policy has been applied within this part of the Borough and how the balance between development and Green Belt protection has been struck over time.

3.7 The emerging Local Plan

The emerging Epsom & Ewell Local Plan represents the next stage in the evolution of the estate. In addition to continuing the regeneration of previously developed land, the Plan proposes changes affecting areas of Metropolitan Green Belt through site allocations and through revisions to the Major Developed Site framework.

Within that broader strategy, HOR001 and HOR004 occupy a particularly significant position because of their proximity to established residential communities, their relationship with Epsom Common and the wider Green Belt landscape, and their shared reliance on the same access arrangements.

3.8 Observations

Viewed collectively, the planning history illustrates an evolving landscape rather than a series of unrelated developments. Successive planning decisions have:

- enabled the regeneration of former institutional land;
- created established residential communities;
- retained significant areas of Metropolitan Green Belt;
- preserved key elements of the historic landscape structure; and
- progressively reshaped the relationship between developed land and open countryside.

The parallel history of ownership adds a further observation. Because the estate was released in stages, and because each release reserved rights over what was retained, the physical framework of the estate has been progressively subdivided while continuing to function as a single system. Roads laid out to serve an institutional campus now serve private residential communities; drainage and services designed for a hospital estate now serve houses; and the rights that permit this are recorded in the transfers described in Chapter 2.

That observation matters because it explains why the assessment of any further phase of development on this estate necessarily engages infrastructure that is inherited, shared and privately held.

KEY MESSAGES

- The estate has evolved progressively rather than through a single phase of redevelopment.
- Previous planning decisions provide important context, even though each new proposal must be considered on its own merits.
- Green Belt policy has consistently influenced the evolution of the estate.
- The ownership chronology runs in parallel with the planning chronology and helps explain the estate's physical arrangement.
- The emerging Local Plan represents the next stage in that continuing evolution.

Chapter 4 Metropolitan Green Belt: Policy and Published Evidence

CHAPTER SNAPSHOT

Purpose

To examine the role of the Metropolitan Green Belt within the Historic Horton Estate and to review the Council's published Green Belt evidence relating to HOR001 and HOR004, explaining the policy context, the content of the evidence, and the principal themes emerging from it.

Principal questions addressed

- What function does the Green Belt perform within this particular landscape?
- What does the Council's published Green Belt evidence say about HOR001 and HOR004?
- How has that evidence evolved during the preparation of the Local Plan?
- What explanation is given for the change in the Council's conclusions?

Principal evidence reviewed

- National Planning Policy Framework and Planning Practice Guidance
- Green Belt Topic Paper — Exceptional Circumstances (TP02) and its addendum
- Green Belt Study Update and EEBC Green Belt Technical Note
- Site assessment material and additional sites for potential allocation
- Post-hearing Green Belt evidence

4.1 Introduction

The Metropolitan Green Belt is one of the defining characteristics of the Historic Horton Estate. It provides the spatial framework within which the former hospital estate, the surrounding residential communities and the adjoining open countryside have evolved.

Both HOR001 and HOR004 comprise land currently designated as Metropolitan Green Belt. Green Belt policy is therefore a central consideration in both the planning application and the emerging Local Plan.

This chapter reviews the published Green Belt evidence. It does not undertake a separate Green Belt assessment. It explains the policy framework, examines what the Council has published, and considers how that material contributes to an understanding of the wider landscape described in Chapters 2 and 3.

4.2 The purpose of the Green Belt

National planning policy identifies the fundamental aim of Green Belt policy as preventing urban sprawl by keeping land permanently open. The essential characteristics of Green Belt are its openness and its permanence, and national policy attaches substantial weight to any harm to the Green Belt. Alteration of Green Belt boundaries through the plan-making process requires exceptional circumstances to be demonstrated and evidenced.

Within the Historic Horton Estate the Green Belt performs additional functions. It contributes to landscape character, provides visual separation between areas of development, supports biodiversity, maintains the setting of established communities and preserves the relationship between the former hospital estate and the wider countryside, including Epsom Common. These qualities are reflected throughout the published evidence reviewed in this review.

4.3 Green Belt within the Historic Horton Estate

The estate presents a distinctive Green Belt context. Unlike many Green Belt locations, it combines former institutional development, established residential communities and extensive open land within a coherent historic framework. That relationship has evolved over decades through the redevelopment of previously developed land while retaining significant areas of openness.

The resulting landscape demonstrates that redevelopment and Green Belt protection have operated alongside one another rather than as mutually exclusive objectives. That relationship forms an important part of the context within which HOR001 and HOR004 fall to be considered.

4.4 The Council's published Green Belt evidence

The emerging Local Plan is supported by a series of published documents considering the role and function of Green Belt land across the Borough. These include the Green Belt Topic Paper addressing exceptional circumstances and its addendum, the Green Belt Study Update, a technical note, site assessment material, and documentation on additional sites considered for potential allocation.

Collectively, those documents examine:

- the contribution of individual parcels to Green Belt purposes;
- landscape character and openness;
- relationships between settlements and the risk of coalescence;
- site-specific characteristics and constraints;
- potential development capacity; and
- the strategic planning balance informing the selection of allocations.

The evidence was prepared for different purposes and at different stages of the plan-making process. Each document should accordingly be understood within the context for which it was produced.

4.5 The evolution of the published evidence

A notable characteristic of the published Green Belt evidence is that it has evolved during the preparation of the Local Plan. As additional technical work has been undertaken, successive documents have refined the assessment of individual sites and of the strategic context.

Evolution of this kind is an expected and legitimate feature of plan-making. Local Plans are informed by an iterative process in which evidence is reviewed, updated and refined before and during examination. Understanding that progression assists in interpreting the relationship between earlier and later assessments.

In the case of HOR001 and HOR004, however, that progression involves a reversal of conclusion, and the published evidence is the appropriate place to look for the explanation.

The December 2024 assessment

The Council's site assessment work published in December 2024 concluded that neither HOR001 nor HOR004 demonstrated the exceptional circumstances necessary to justify release from the Green Belt.

In relation to HOR001, the assessment recorded that the site was "rather small", such that there was "limited benefit from the quantum of development" when weighed against the impact on openness. It concluded that the site did not exhibit exceptional circumstances outweighing Green Belt harm. In relation to HOR004, the assessment described semi-natural grassland containing protected trees which blended

into the surrounding landscape by reason of its proximity to Epsom Common, and again concluded that exceptional circumstances were not demonstrated.

The assessment went further. It recorded that both sites were awkwardly shaped parcels vulnerable to further incremental infill, and characterised that risk as the "slow ebbing away of small areas of Green Belt". That is not an incidental observation. It is the Council's own identification, in its own published evidence, of precisely the cumulative mechanism examined in Chapter 5.

The current position

The evidence now before the examination proposes both sites for release. In relation to HOR001, the current assessment describes the proposal as the "natural rounding off" of the existing built form and records "no significant environmental constraints".

The published material identifies the principal drivers of that change as the evolution of national planning policy since the earlier assessment — in particular changes to the National Planning Policy Framework and the renewed emphasis on housing delivery — together with the application of the sequential approach to Green Belt release derived from the Calverton judgment.

The two positions compared

Matter	December 2024 assessment	Current position
HOR001 — exceptional circumstances	Not demonstrated	Demonstrated; site proposed for release
HOR001 — scale and benefit	Site "rather small"; limited benefit from the quantum of development against the impact on openness	Development characterised as the "natural rounding off" of existing built form
HOR001 — constraints	Green Belt land contributing to openness	"No significant environmental constraints"
HOR004 — exceptional circumstances	Not demonstrated	Demonstrated; site proposed for release
HOR004 — site character	Semi-natural grassland with protected trees, blending into the landscape by reason of proximity to Epsom Common	Characteristics not disputed; site nonetheless proposed for release
Incremental release	Both parcels awkwardly shaped and vulnerable to further infill; risk of the "slow ebbing away of small areas of Green Belt"	No equivalent warning identified in the current published evidence

Table 4.1 — The Council's published conclusions compared. Sources: site assessment material published December 2024; current Local Plan evidence base. Quoted phrases are the Council's own.

What has not changed

The significance of Table 4.1 lies in what sits on neither side of it.

The sites themselves have not changed. Their area has not changed. Their contribution to Green Belt openness has not changed. Their relationship with Epsom Common has not changed. Their protected trees remain. The semi-natural grassland at HOR004 remains. The shape of both parcels — the characteristic that led the Council to identify them as vulnerable to incremental infill — has not changed.

What has changed is national planning policy, and the Council's conclusion. National policy has indeed changed materially, and the Council is entitled to revisit its judgement in the light of it. But a change in national policy does not itself dissolve site-specific Green Belt harm; it alters the weight to be set against that harm. The published evidence is therefore the place in which one would expect to find the site-specific reasoning that bridges the two positions in Table 4.1 — and it is that reasoning which the questions below seek to locate.

The sequential requirement the Inspector directed the Council to address

The examination record establishes the origin of the revised assessment, and it did not begin with the objectors.

At the Matter 4 hearing on 1 October 2025 the Inspector, Mrs Christa Masters MA (Hons) FRTPI, identified shortcomings in Section 4 of the Green Belt Topic Paper — the section comprising the assessments of individual Green Belt sites and of whether exceptional circumstances existed for altering the boundaries. The Council agreed that the topic paper could be updated to address those concerns. In addition, as the Council has confirmed, it was agreed that the Council should provide further information demonstrating how the sequential requirement of national policy had been satisfied, namely that where it has been concluded that Green Belt release is necessary, first consideration should be given to land which has been previously developed and/or is well served by public transport.

That requirement was therefore not raised by objectors. It was identified at the examination as something the Council was required to demonstrate.

Applying it to HOR001 raises two questions of fact.

Limb of the sequential requirement	Position recorded in representations
Previously developed land	The site is entirely greenfield and has never been developed
Well served by public transport	The site lies approximately twenty minutes' walk from Epsom station and is served by limited hopper bus routes which do not operate at the frequencies or hours required by a facility operating twenty-four hours a day

Table 4.2 — HOR001 against the sequential requirement. The positions stated are those recorded in representations and are matters of fact capable of verification.

The position at HOR004 is comparable. The Council's own December 2024 assessment describes semi-natural grassland containing protected trees; the site is not previously developed land, and it lies further from Epsom station than HOR001. The same two questions therefore arise in respect of it.

If both limbs are answered in the negative for either site, the question which follows is where the published evidence records the land given first consideration ahead of it. The review has not identified that material, and the third question in the panel below is directed to it.

The queries raised through the examination, and the responses received

The matters recorded in this chapter have been put to the Council through the Programme Officer. The sequence is recorded here because it forms part of the examination record.

Date	Event
2 July 2026	At the hearing, the Council explains that HOR001 and HOR004 were reassessed using a revised methodology

Date	Event
July 2026	Query submitted asking where that revised methodology is documented within the examination evidence, how it differs from the methodology applied in December 2024, by whom it was prepared and when it was adopted
13 July 2026	Council responds. The response describes the process by which the revised methodology came to be prepared — the Inspector's identification of shortcomings, the Council's agreement to undertake further work, the preparation and approval of HD4_1, and the subsequent Topic Paper Update. It states that the Council followed the revised methodology in preparing that Update
13 July 2026	Further query submitted, seeking identification of the specific inconsistencies in the original assessments of HOR001 and HOR004, the changes made as a result, and the evidence justifying the reversal of the earlier conclusion
At the date of this review	No response identifying that material has been received

Table 4.3 — Queries raised through the Programme Officer concerning the revised Green Belt assessments.

Two observations arise, and both concern the evidence rather than the conduct of any party.

The first is that the Council's response of 13 July describes the procedural history by which a revised methodology came into existence, but does not identify a document in which that methodology is itself set out, as distinct from the Post Hearing Action Note recording the need for further work. The distinction matters because the methodology is what produced the changed conclusions.

The second is that the reassessment was prompted by the Council's acknowledgement that the original assessments contained inconsistencies and inaccuracies. Where a conclusion is reversed on that basis, the nature of the error in the particular assessments concerned is properly part of the evidence base. At the date of this review that material has not been identified.

Questions arising

The following questions arise directly from the published evidence. They are recorded as questions because that is what they are: the review does not know the answers, and the answers are not apparent from the material examined. They go to the sufficiency and transparency of the published reasoning, not to the Council's entitlement to reach a different conclusion from the one it reached in December 2024.

QUESTIONS ARISING FROM THE PUBLISHED GREEN BELT EVIDENCE

- What has materially changed about these two sites since December 2024?
- Where is the revised assessment methodology itself set out, as distinct from the Post Hearing Action Note recording the need for further work?
- What were the specific inconsistencies or inaccuracies in the original assessments of HOR001 and HOR004, and what changed as a result?
- Is HOR001 previously developed land, and is it well served by public transport? If the answer to both is no, which land was given first consideration ahead of it, and where is that recorded?
- Where in the Green Belt Topic Paper Update is the sequential assessment for HOR001 and HOR004 set out?
- How is a three-storey, 70-bed institutional building operating twenty-four hours a day characterised as the "natural rounding off" of existing built form?
- How are the facts that the site lies within the Green Belt, contains protected trees and adjoins Epsom

> Common reconciled with the conclusion that there are "no significant environmental constraints"?
> - If the Council's own evidence warned of the "slow ebbing away of small areas of Green Belt", what weight is now given to that warning, and where is that assessment recorded?

The first of those questions is the one on which the others turn, and it is put in the Council's own terms. Where a local planning authority reverses a published conclusion on the same land, on the same facts, within approximately eighteen months, the reasoning that supports the reversal is properly a matter of public record. That reasoning has not been identified in site-specific form.

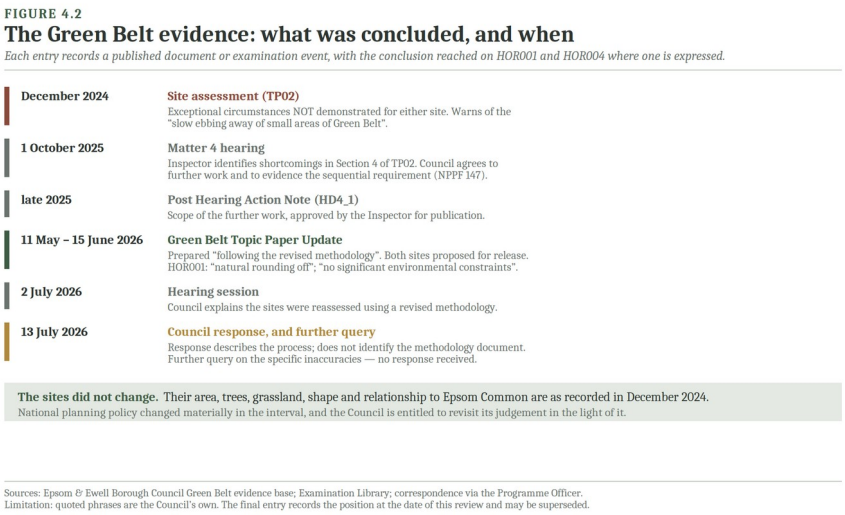


Figure 4.2 — The Green Belt evidence: what was concluded, and when *Quoted phrases are the Council's own.*

4.6 Green Belt and landscape character

The published evidence consistently recognises the close relationship between Green Belt and landscape character. Within this estate, openness is influenced not only by the absence of built development but also by mature woodland, open grassland, long views, historic landscape structure and the visual relationship between developed and undeveloped land. Those characteristics are examined further in Chapter 9.

4.7 Green Belt and established communities

The Green Belt surrounding Oak Glade and Cuddington Glade performs more than a strategic planning function. It contributes directly to the environmental setting of these established communities, defines their relationship with the wider landscape, and reinforces the transition between residential development and open countryside.

The published evidence recognises that Green Belt performs multiple roles simultaneously, combining strategic planning objectives with landscape, ecological and visual functions. That wider perspective is reflected throughout the technical evidence reviewed in later chapters.

4.8 The national policy tests applied to these sites

Three distinct national policy tests bear on HOR001 and HOR004, and it assists to keep them separate because they operate at different stages and on different decision-makers.

Alteration of Green Belt boundaries: exceptional circumstances

Green Belt boundaries may be altered through plan-making only where exceptional circumstances are fully evidenced and justified. This is the test engaged by the Local Plan, and it is the test addressed in Table 4.1. It is for the Inspector.

Development in the Green Belt: very special circumstances

While land remains in the Green Belt, the construction of new buildings is inappropriate development, which is by definition harmful. Substantial weight is given to that harm, and permission should not be granted unless very special circumstances exist which clearly outweigh it. This is the test engaged by Planning Application 26/00002/FUL, and it is for the Local Planning Authority.

The relationship between the two tests is direct and is worth stating plainly. If the Local Plan releases HOR001 from the Green Belt, the very special circumstances test ceases to apply to the care home application, and the most demanding obstacle in its path is removed. If the site remains Green Belt, that test continues to apply in full. The outcome of the examination therefore substantially determines the framework within which the planning application falls to be decided.

Grey belt

National policy now provides for the identification of "grey belt" land — Green Belt land which does not strongly contribute to certain Green Belt purposes — and applies a modified approach to it. Two criteria are relevant.

The first concerns previously developed land. National policy defines this as land which is or was occupied by a permanent structure. Nothing in the published evidence examined for this review records any previous development on either HOR001 or HOR004, and the Council's own site assessments describe HOR004 as semi-natural grassland. On the material available, neither site appears capable of satisfying this limb, and the review has found no evidence to the contrary.

The second concerns the contribution the land makes to Green Belt purposes, and national policy excludes from grey belt land where there would be strong reason for restricting development by reason of the designations to which it relates. Representations record that HOR001 adjoins a Site of Special Scientific Interest and Ancient Woodland at Epsom Common, and functions as a wildlife corridor connecting to it.

The published application material and the Council's assessment address the grey belt question in their own terms. The review records that the site's greenfield status and its relationship to the adjoining SSSI and Ancient Woodland are matters of fact capable of verification, and that they bear directly on whether the grey belt route is available at all. Where it is not, the very special circumstances test applies unmodified.

THE THREE TESTS IN SUMMARY

- Exceptional circumstances — whether the Green Belt boundary may be altered through the Local Plan. For the Inspector.
- Very special circumstances — whether inappropriate development may be permitted while the land remains Green Belt. For the Local Planning Authority.
- Grey belt — whether a modified approach is available. Turns on whether the land is previously developed and on the designations affecting it.
- The tests interact: releasing HOR001 through the Local Plan removes the very special circumstances test from the planning application entirely.

4.9 Relationship to HOR001 and HOR004

Both sites occupy land currently designated as Metropolitan Green Belt, but they arise through different statutory processes and are supported by different strands of evidence. HOR001 is considered through a detailed planning application supported by site-specific technical assessments; HOR004 forms part of the strategic site selection process undertaken through the emerging Local Plan. Detailed consideration of each is provided in Chapters 6 and 7.

KEY MESSAGES

- Green Belt is the defining policy context for both sites, and both remain designated Green Belt today.
- In December 2024 the Council concluded that neither site demonstrated exceptional circumstances, and warned that releasing parcels of this kind would produce the "slow ebbing away of small areas of Green Belt".
- The current evidence proposes both sites for release. The physical characteristics of the sites are unchanged.
- National policy has changed materially, and the Council is entitled to revisit its judgement in the light of it.
- A change in national policy alters the weight to be set against Green Belt harm; it does not remove the harm, and it does not substitute for site-specific reasoning.
- The Inspector required the Council to demonstrate that first consideration had been given to previously developed land and to land well served by public transport. HOR001 appears to satisfy neither limb.
- Queries seeking the revised methodology and the underlying site-specific reasoning were put to the Council through the Programme Officer in July 2026. The response describes the process by which the methodology came to exist; it does not identify the methodology itself or the evidence for the changed conclusions.

Chapter 5 Cumulative Green Belt and Landscape Change

CHAPTER SNAPSHOT

Purpose

To examine the published evidence bearing on the combined effect of the Green Belt releases proposed across the Historic Horton Estate and the wider Horton corridor, and to consider whether that combined effect has been assessed in a single, publicly available form.

Principal questions addressed

- How many Green Belt sites are proposed for release across the wider Horton area?
- Has the combined effect of those releases been assessed together?
- What does the estate's history of phased disposal contribute to that question?
- How do HOR001 and HOR004 interact with one another in particular?

Principal evidence reviewed

- Green Belt Topic Paper (TP02) and addendum
- Additional Sites for Potential Allocation (COUD-029)
- Sustainability Appraisal Report Addendum (COUD_030)
- Habitats Regulations Assessment Addendum (COUD_031)
- Filed transfers evidencing the phased disposal of the estate

5.1 Introduction

Earlier chapters have described the Historic Horton Estate as a single landscape that has evolved through successive phases of change. This chapter considers the consequence of that description for the assessment of the changes now proposed.

The question is a narrow one, and it is a question about evidence rather than about merits. Individual site assessments necessarily consider individual sites. Where a number of sites within a single landscape are proposed for release at the same time, and where those sites share the same access arrangements, the same drainage system, the same landscape framework and the same receptor communities, the question arises whether the combined effect has also been assessed, and if so, where that assessment is recorded.

5.2 The scale of the proposed change, quantified

The Council's published evidence identifies five former hospital sites as Major Developed Sites within the Metropolitan Green Belt. Together they comprise the historic Horton Hospital estate, extending to 204.29 hectares, all of which remains designated Green Belt pending alteration through the Local Plan.

Historic hospital	Current name	Site area (ha)
West Park Hospital	West Park	34.95
Manor Hospital	Manor Park	59.14
Horton Hospital	Livingstone Park	38.92
Long Grove Hospital	Clarendon Park	45.09
St Ebba's Hospital	St Ebba's	26.19

Historic hospital	Current name	Site area (ha)
Total		204.29

Table 5.1 — The historic Horton Hospital estate. Source: Epsom & Ewell Borough Council Green Belt Study Update and Green Belt Topic Paper.

Of that total, the Council classifies approximately 87.63 hectares (42.9%) as previously developed land and approximately 116.66 hectares (57.1%) as natural environment. Roughly three-fifths of the estate is therefore undeveloped.

The Submission Local Plan proposes revised Major Developed Site inset boundaries for each of the five sites. Inset land is removed from the Metropolitan Green Belt and brought within the settlement boundary. The proposed insets are as follows.

Site	Proposed inset (ha)	Proportion of site
West Park	25.60	73.2%
St Ebba's	16.14	61.6%
Livingstone Park	14.63	37.6%
Clarendon Park	12.19	27.0%
Manor Park	13.71	23.2%
Total	82.27	40.3%

Table 5.2 — Proposed Major Developed Site inset boundaries, ranked by proportion of site affected. Source: Submission Local Plan and Green Belt evidence base. Percentages as published by the Council.

Taken together, the Council proposes to remove 82.27 hectares from the Metropolitan Green Belt through revised inset boundaries. That is approximately 40.3% of the entire historic Horton Hospital estate.

HOR001 (approximately 0.52 hectares) and HOR004 (approximately 1.11 hectares) are additional to that figure. They are promoted through a different route — site allocation rather than inset revision — and are assessed in different documents. But they adjoin the same historic estate, and they would remove further Green Belt land from the same landscape.

> **THE CUMULATIVE POSITION IN ONE LINE**
>
> Across a single historic landscape of 204.29 hectares, the Local Plan proposes to remove approximately 40.3% from the Metropolitan Green Belt through inset revision, together with two further allocations adjoining it. Each element is assessed separately. No published document assesses them together.

The published evidence identifies approximately eighteen Green Belt parcels across the wider Horton area as proposed or considered for release. Individually, each is modest; several, including HOR001 and HOR004, are small. Each is assessed on its own terms, and in each case the harm arising from that parcel is weighed against the benefits of the development it would accommodate. Table 5.2 shows what those individual assessments amount to when added up.

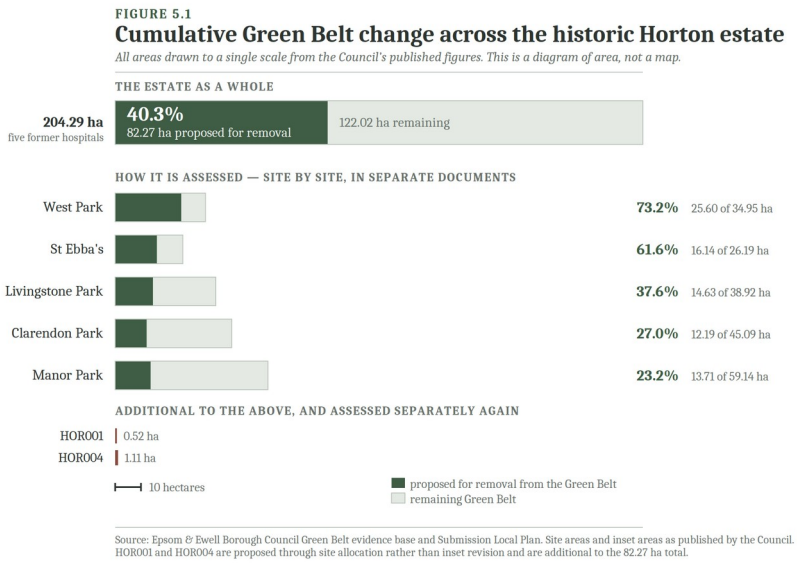


Figure 5.1 — Cumulative Green Belt change across the historic Horton estate *Areas drawn to a single scale from the Council's published figures.*

5.3 What the site-by-site evidence does

It is important to be precise about what the published evidence does address, because the review does not suggest that the Council has assessed nothing.

Each proposed allocation is the subject of site assessment material considering its contribution to Green Belt purposes, its constraints, its accessibility and its development potential. The Sustainability Appraisal and its addendum consider the Plan's strategy and reasonable alternatives at the level of the Plan as a whole. The Habitats Regulations Assessment addendum considers effects on European sites, including in-combination effects, within the scope of that statutory regime. The Green Belt Topic Paper addresses exceptional circumstances at both site and strategic level.

These are substantial documents, and each performs its intended function.

5.4 The question that remains

The question the review records is whether, in addition to those assessments, the published evidence contains a single assessment of the combined effect of the proposed releases across the Horton corridor upon:

- the openness and continuity of the Green Belt in this corridor considered as a whole;
- the local highway network and the shared private access serving Oak Glade and Cuddington Glade;
- the drainage and utility infrastructure inherited from the institutional estate;
- the mature landscape framework and its ecological connectivity; and
- the character of the established residential communities that occupy the estate.

It is not suggested that no such assessment exists; the review states only what it has been able to verify. Having examined the published Green Belt, sustainability, habitats, transport and infrastructure evidence listed at Appendix A, no document has been identified in which the combined effect of the proposed Horton corridor releases is assessed as a single question.

Two features of the published evidence give that absence weight. The first is that the Council itself identified the mechanism. Its December 2024 assessment warned that releasing parcels of this kind would

produce the "slow ebbing away of small areas of Green Belt" — a description of cumulative erosion, recorded in the Council's own evidence, in respect of these very sites. The second is that the concern was not answered so much as omitted: no reaffirmation of that warning, and no reasoned explanation of why it no longer applies, has been identified in the current evidence.

Where an authority identifies a risk in its own published evidence and subsequently proposes the course of action that gives rise to it, the assessment of that risk is properly part of the evidence base. That is the point recorded here.

5.5 The contribution of the estate's ownership history

This is the point at which the registered title evidence described in Chapter 2 makes a distinct contribution to the planning analysis.

A cumulative argument is only as strong as the explanation for why effects accumulate. It is straightforward to assert that HOR001 and HOR004 would combine to produce effects greater than either alone. It is more persuasive to explain why.

The transfers supply that explanation. Because the estate was disposed of in successive parts rather than redeveloped comprehensively, each new phase was built into infrastructure inherited from the phase before it, and each disposal expressly reserved the rights necessary to permit that. The 2010 transfer granted the Cuddington Glade land a right of way over an accessway retained in institutional ownership, together with rights to connect into existing service media, and reserved to the transferor the right to develop the retained land. The 2016 transfer vested the Oak Glade roads and service media in a residents' management company while expressly reserving rights of way and rights of connection for the benefit of the retained land.

The consequence is that successive phases of development on this estate do not each bring their own infrastructure. They draw upon a common inheritance. Where that is so, the effects of successive phases fall upon the same physical assets, and they are therefore additive by design rather than by coincidence.

OBSERVATION

- The phased disposal of the estate, recorded in the filed transfers, provides a documented basis for the proposition that development at HOR001 and HOR004 would draw upon shared and inherited infrastructure rather than independent provision.
- That is a matter of physical and legal arrangement rather than of planning judgement, and it is capable of being verified from the registers and filed transfers.
- It does not follow that the combined effect is unacceptable. It follows only that the combined effect is a proper subject for assessment.

5.6 The particular relationship between HOR001 and HOR004

The two sites lie on opposite sides of Oak Glade. HOR001 adjoins its southern edge; HOR004 adjoins its eastern edge and directly abuts Cuddington Glade. They are promoted through separate statutory processes, and their evidence sits at different levels of detail.

They nonetheless share the same receptor communities, the same landscape framework, the same ecological network, the same drainage catchment and — critically — the same shared private access road. Chapter 8 considers the transport consequence of that in detail.

It follows that the planning implications of each proposal cannot be fully understood in isolation from the other, and that this is a consequence of their physical relationship rather than of the process by which each is promoted.

5.7 Why this matters to the examination

A Local Plan is examined against the tests of soundness. One of those tests requires that the Plan be justified — that is, based on proportionate evidence and an appropriate strategy, taking into account the reasonable alternatives.

The observation recorded in this chapter is directed to that test. Where a plan proposes to remove approximately 40.3% of a single, historically coherent landscape from the Green Belt, together with two further allocations adjoining it, the question whether the evidence base assesses that change as a whole is a question about proportionality of evidence. It is not a question about the merits of any individual parcel, and this chapter does not treat it as one.

THE REQUEST ARISING FROM THIS CHAPTER

- That the combined effect of the proposed Green Belt changes across the historic Horton Hospital estate — the five Major Developed Site inset revisions together with HOR001 and HOR004 — be assessed and published as a single question before those changes are confirmed.
- The request is for assessment, not for refusal. If the combined effect is acceptable, the assessment will demonstrate it. If it is not, the Plan should know that before it is adopted rather than afterwards.

5.8 What this chapter does not conclude

Three limitations should be stated expressly.

- Nothing in this chapter determines that the proposed releases are individually or collectively unacceptable. That is a matter for the Inspector and, in respect of HOR001, for the Local Planning Authority.
- Nor does it establish that a corridor-wide cumulative assessment was required as a matter of law. Whether one is necessary is itself a matter for the examination.
- Neither are the transfers treated as evidence that development cannot proceed. They record the opposite: development of retained land was expressly contemplated when each disposal was made.

What is recorded is that the cumulative perspective is legitimate; that it is supported by the documented history of the estate and by the Council's own arithmetic; and that no single accessible assessment of it has been identified.

KEY MESSAGES

- The historic Horton Hospital estate extends to 204.29 hectares across five former hospital sites, all currently Metropolitan Green Belt.
- The Local Plan proposes to remove 82.27 hectares — approximately 40.3% of that estate — through revised Major Developed Site inset boundaries.
- HOR001 (0.52 ha) and HOR004 (1.11 ha) are additional to that figure and adjoin the same landscape.
- Every element is assessed separately, through different documents and different processes. No

published document assesses them together.

- The estate's history of phased disposal, evidenced in the filed transfers, explains why successive phases draw upon shared and inherited infrastructure.
- The estate view: this is the point at which examining the estate, rather than the sites, produces a materially different picture from the one the individual assessments convey.

Chapter 6 HOR001 — Proposed Care Home and Review of the Published Evidence

CHAPTER SNAPSHOT

Purpose

To describe the proposal comprised in Planning Application 26/00002/FUL, its site and its receiving environment, and to review the published evidence submitted in support of it.

Principal questions addressed

- What precisely is proposed, and what are its operational characteristics?
- What is the site, and what is its role within the wider landscape?
- What is the character of the environment that would receive the development?
- What is the relevant planning history of the site and its surroundings?

Principal evidence reviewed

- Planning Application 26/00002/FUL and its supporting documents
- Transport Statement and Stage 1 Road Safety Audit
- Submitted location, block, site and landscape plans
- Local Plan site assessment material relating to HOR001
- Planning Application 15/00422/FUL (refused 2015)

6.1 Introduction

HOR001 is both a proposed Local Plan allocation and the subject of a live planning application. Planning Application 26/00002/FUL, made by Frontier Estates through its agent Nexus Planning, proposes the erection of a residential care home on land immediately south of Oak Glade.

This chapter describes the proposal and its context and reviews the published evidence submitted in support of it. It does not assess the planning merits of the application, which are matters for the Local Planning Authority. Topic-specific evidence is examined in Chapters 8 to 12.

6.2 The proposal

The published application material describes a development with the following principal characteristics.

Element	As described in the published application material
Applicant	Frontier Estates (not the registered proprietor of the site — see 6.5)
Agent	Nexus Planning
Architect	jm architects
Use	Residential care home
Capacity	70 bedrooms
Height	Three storeys
Operation	Twenty-four hours a day, seven days a week
Vehicular access	Direct access to Cherry Tree Lane, with a continuous footway carried across the

Element	As described in the published application material
	access
Car parking	20 on-site spaces, together with the proposed use of eight spaces within Oak Glade's parking area
Servicing	On-site loading area for service, delivery and emergency vehicles, accessed across the footway on Cherry Tree Lane
Associated works	Landscaping, boundary treatment, drainage and associated infrastructure

Table 6.1 — The proposal in summary. Source: Planning Application 26/00002/FUL and the submitted Transport Statement.

Certain of these characteristics are inherent operational features of the use proposed rather than matters of design. A care home of this capacity operating continuously generates staff shift changes, visitor arrivals and departures throughout the day and evening, deliveries, clinical and general servicing, refuse collection and periodic emergency vehicle access. Those characteristics are recorded here because they form part of the description of the development and are relevant to the amenity and transport evidence reviewed later.

6.3 The site

The site comprises land immediately south of Oak Glade, within the Metropolitan Green Belt. The published evidence identifies it as land forming the transition between the built-up edge of Oak Glade and the wider Green Belt landscape extending south and west towards Epsom Common.

The site contains and adjoins mature trees, some of which are protected. Its southern and western boundaries are defined by established vegetation which contributes both to the containment of the existing residential edge and to the wider landscape framework described in Chapter 2.

That transitional position is a factual description of the site's location. It explains why the landscape, Green Belt and visual evidence reviewed in Chapter 9 addresses the site in terms of edge and openness rather than in terms of an enclosed infill plot.

6.4 The receiving environment — Oak Glade

Oak Glade is the residential community that would receive the development. A factual description of its characteristics is necessary because the amenity and transport evidence reviewed later can only be understood by reference to it.

- low-density residential development of predominantly two-storey houses;
- grouped parking courts, with the result that no vehicles move within the residential development itself;
- mature landscaping and communal landscaped areas;
- private estate roads, owned and managed by Oak Glade Management Limited;
- rear private gardens backing onto the estate's southern edge;
- low ambient traffic, noise and light levels, interrupted only by occasional resident gatherings such as summer parties and seasonal events; and
- a quiet residential character deriving from its position at the edge of the Green Belt.

Oak Glade and the adjoining Cuddington Glade together comprise twenty-eight households.

6.5 The site within the wider estate

Planning documents necessarily focus on the application boundary. The registered title evidence described in Chapter 2 records that the site sits within a much larger estate that was deliberately arranged around shared roads, shared services, reserved rights and retained land.

Three features of that arrangement bear on the assessment of this application.

First, the roads serving Oak Glade are privately owned. They were vested in Oak Glade Management Limited by the 2016 transfer, which defined them as all roads, verges and footpaths, including their lighting, constructed within the estate. They are not adopted highway, and their long-term maintenance is the responsibility of the management company and, through it, of the residents.

Secondly, the parking spaces within Oak Glade were sold with the individual houses and are held as individual freehold parcels by individual householders, as recorded at Chapter 12. There is no communal car park held for the general use of residents. The eight spaces referred to in the application are a separate block at the northern edge of the estate, adjoining Cuddington Glade, which was retained on the 2016 transfer and is understood to be owned by Oak Glade Epsom Limited. Whether the resulting provision is adequate in planning terms is considered at Chapter 8; the effect of Condition 9 of the 2014 permission is considered at Chapter 12.

Thirdly, the 2016 transfer reserved rights of way over the estate roads and rights to connect into the estate service media for the benefit of the land retained by the transferor. The estate was therefore arranged on the express footing that land beyond its boundary might in future draw upon its roads and services. As recorded in Chapter 2, however, the benefit of those reservations attaches to a defined tinted part of title SY818290 rather than to the whole of it.

Fourthly, the applicant is not the registered proprietor of the application site. The land within which the site falls is registered under title SY818290, the proprietor of which is Oak Glade Epsom Limited. Applications are frequently and properly made by parties holding an option or conditional contract rather than the freehold, and no inference adverse to the applicant is drawn from this. It is recorded because it bears on the ownership certificate accompanying the application, which is considered at Chapter 12.

> **FOR THE AVOIDANCE OF DOUBT**
>
> - Nothing here suggests that the title evidence prevents the development, or that the applicant lacks the rights necessary to bring it forward.
> - A right reserved between private parties is not a planning permission, and the existence or absence of such rights is not a planning consideration in itself.
> - The purpose of recording this material is to explain why access, parking and servicing arrangements at this location engage privately owned infrastructure, and why the published evidence addresses them in the terms it does.

6.6 Relevant planning history

Two elements of the planning history are directly relevant to this site.

The first is Planning Application 15/00422/FUL, by which permission for a single dwelling on adjoining Green Belt land was refused in 2015 on the ground that it constituted inappropriate development in the Green Belt.

The contrast is stark enough to state precisely. In 2015, one house on this Green Belt land was refused as inappropriate development. In 2026, a three-storey institutional building of seventy bedrooms, operating twenty-four hours a day, is proposed on land of the same designation and is characterised in the current evidence as the "natural rounding off" of existing built form.

Every application falls to be determined on its own merits, and the 2015 decision does not bind any later one. National policy has also changed in the interval. The review therefore records the earlier decision and the contrast as matters of fact, and records that representations have repeatedly raised the difficulty of reconciling them. Whether they can be reconciled, and on what reasoning, is a matter for the Local Planning Authority; the point is developed further in Chapters 4 and 13.

The second is the 2014 planning permission pursuant to which Oak Glade itself was developed, together with the associated deed of agreement. That permission established the residential development into which the current proposal would be inserted.

6.7 The published evidence in support of the application

The application is supported by the range of technical documentation normally accompanying a proposal of this kind, including a planning statement, design and access material, a transport statement supported by a Stage 1 Road Safety Audit, landscape and arboricultural information, ecological information, drainage and flood risk material, and the submitted plans.

Each of those documents is reviewed under the relevant topic heading in Chapters 8 to 12. The purpose of this chapter is to establish what is proposed and where; the purpose of the topic chapters is to review what the evidence says about it.

6.8 Observations

OBSERVATIONS

- The proposal is accurately characterised as a three-storey, 70-bed institutional building operating continuously, rather than as a residential development of comparable scale.
- The site occupies a transitional position at the edge of the built form, adjoining both an established residential community and open Green Belt.
- The receiving environment is unusually quiet by suburban standards, principally because parking is contained communally and through movement is minimal.
- The parking strategy relies in part on spaces within land owned by Oak Glade Management Limited.
- The published evidence addresses the proposal comprehensively at site level; questions of cumulative effect are addressed in Chapters 5 and 13.

KEY MESSAGES

- HOR001 is both a proposed allocation and a live planning application, and is the more fully evidenced of the two proposals.
- The operational characteristics of a 24-hour care home are inherent to the use and are relevant to the amenity and transport evidence.
- The site sits at the interface between an established residential community and the Green Belt.

- Access, parking and servicing at this location necessarily engage privately owned estate infrastructure.

Chapter 7 HOR004 — Proposed Local Plan Allocation and Review of the Published Evidence

CHAPTER SNAPSHOT

Purpose

To review the published evidence relating to the proposed Local Plan allocation HOR004, describing the site, its planning context, the evidence supporting the allocation and its relationship with the wider estate.

Principal questions addressed

- What is proposed at HOR004, and at what stage is the proposal?
- What does the published evidence say about the site — and what does it not yet address?
- How does the site relate to Cuddington Glade and Oak Glade?
- Why should HOR004 be understood as part of the estate's continuing evolution?

Principal evidence reviewed

- Emerging Epsom & Ewell Local Plan and policies map
- Site assessment material and Green Belt Topic Paper (TP02)
- Additional Sites for Potential Allocation (COUD-029)
- Sustainability Appraisal Report Addendum (COUD_030)
- Filed transfer dated 17 June 2010 and register of title SY788683

7.1 Introduction

HOR004 comprises land proposed for allocation within the emerging Epsom & Ewell Local Plan for residential development of approximately fifty dwellings.

Unlike HOR001, HOR004 is not the subject of a planning application. It is being considered through the strategic plan-making process by which the Council identifies land it regards as suitable for future development. That distinction is fundamental to this chapter, because it determines both what the published evidence can presently establish and what it cannot.

This chapter is accordingly concerned as much with the scope of the available evidence as with its content.

7.2 The site

HOR004 comprises undeveloped Metropolitan Green Belt land lying immediately adjacent to the eastern boundary of Cuddington Glade and to the eastern side of Oak Glade. It forms part of the wider Green Belt landscape surrounding the former Manor Hospital estate and contributes to the transition between established residential development and open countryside.

The Council's published assessment describes the site as semi-natural grassland containing protected trees which blends into the surrounding landscape by reason of its proximity to Epsom Common. It is characterised by open grassland, mature trees, woodland edges and established landscape features typical of the estate.

The site adjoins:

- Cuddington Glade to the west;
- Oak Glade to the west and south-west;

- retained Green Belt extending east and south;
- the playing fields associated with Stamford Green Primary School; and
- the existing network of local roads and footpaths.

7.3 What the published evidence addresses

The evidence supporting the proposed allocation is strategic. It comprises site assessment material considering the site's suitability, availability and achievability; Green Belt evidence considering its contribution to Green Belt purposes and the exceptional circumstances said to justify its release; sustainability appraisal considering the allocation against the Plan's objectives and reasonable alternatives; and strategic transport, ecological and infrastructure evidence prepared at Plan level.

That evidence is appropriate to its purpose. Strategic evidence is intended to establish whether a site is capable of accommodating development in principle, not to determine how a particular scheme would perform.

7.4 What the published evidence does not yet address

It follows that a number of matters that would ordinarily be assessed in respect of a development of approximately fifty dwellings are not yet before the reader. This is a factual observation about the stage the proposal has reached, not a criticism of the Council.

The published material examined for this review does not include:

- site layout, and therefore no published information on the position, height, orientation or separation of proposed dwellings;
- site-specific transport assessment addressing trip generation, access geometry, parking or construction traffic;
- landscape and visual impact assessment prepared for a defined scheme;
- arboricultural impact assessment identifying which of the protected trees would be retained, and what root protection and construction methodology would apply;
- detailed ecological survey and biodiversity net gain assessment for a defined proposal;
- drainage strategy or flood risk assessment for a defined proposal; or
- assessment of the relationship between proposed dwellings and existing homes in Oak Glade and Cuddington Glade, or the school playing fields.

Representations submitted through the statutory process record concern that indicative layout material suggests overlooking towards existing gardens and habitable rooms in both communities, and towards the school playing fields. Those matters would fall to be assessed at application stage. The concern is recorded, together with the stage at which it could be resolved.

7.5 HOR004 within the estate's continuing evolution

The Local Plan discusses HOR004 as one allocation among others. The registered title evidence permits it to be understood more precisely: as the next stage in a sequence of releases from the same institutional estate.

The land at Cuddington Glade was transferred out of National Health Service ownership by the Transfer dated 17 June 2010, which defined the land retained by the Trust as the "Retained Land" and reserved to the transferor and its successors an express right to build, rebuild, extend or alter buildings on that retained land, together with a covenant by the purchaser not to do anything that would interfere with or delay its

development for any lawful purpose. The register for title SY788683 records the present registered proprietor of the Cuddington Glade land as Epsom Projects Limited.

Two points follow, and it is important to state both.

The first is that future development of land retained on that disposal was expressly contemplated in 2010. The transfer is not evidence that development at HOR004 or on adjoining retained land was unforeseen, and the review does not advance it as such.

The second is that the same transfer records the terms on which the retained land and the land sold were to continue to function together: shared use of an accessway subject to proportionate contribution to its repair, maintenance, lighting and renewal; shared use of service media subject to consent and to proportionate contribution to their upkeep; and reciprocal rights of entry for maintenance. Those arrangements were designed for two small residential communities and the institutional land behind them. Whether they remain appropriate to serve, in addition, approximately fifty dwellings and a 70-bed care home is precisely the question that the transport and infrastructure evidence reviewed in Chapters 8 and 12 must address.

Understood in this way, HOR004 is not simply another housing allocation. It is another stage in the continuing evolution of an estate that has been released in parts, and whose parts remain physically and legally interdependent.

7.6 The relationship with HOR001

HOR004 lies on the opposite side of Oak Glade from HOR001. The two proposals would place development on either side of the same small residential community, drawing on the same access arrangements and affecting the same landscape framework and ecological network.

Because HOR004 is at allocation stage and HOR001 is at application stage, the two are presently supported by evidence of very different specificity. That is a proper consequence of the two statutory processes. It does, however, mean that the combined effect of the two proposals cannot at present be assessed from the published documents with the same precision as the effect of HOR001 alone.

7.7 Observations

OBSERVATIONS

- HOR004 is at allocation stage; the published evidence is strategic and does not yet address scheme-specific matters.
- The Council's December 2024 assessment described the site as semi-natural grassland with protected trees, blending into the landscape by reason of its proximity to Epsom Common, and concluded that exceptional circumstances were not demonstrated.
- The characteristics recorded in that assessment are physical characteristics of the site and have not themselves changed.
- The 2010 transfer expressly contemplated development of the land retained on that disposal.
- The same transfer records that the retained land and the land sold were intended to share an accessway and service media on a proportionate-contribution basis.
- Whether those shared arrangements remain adequate at the scale now proposed is a question for the transport and infrastructure evidence.

KEY MESSAGES

- HOR004 is supported by strategic evidence only, and a number of matters remain to be assessed at application stage.
- The site's recorded characteristics — semi-natural grassland, protected trees, proximity to Epsom Common — are unchanged since the December 2024 assessment.
- The title evidence explains the shared access and servicing arrangements that any future scheme would inherit.
- HOR004 should be understood as a further stage in the estate's continuing evolution rather than as an isolated allocation.

Chapter 8 Highways, Transport and Accessibility

CHAPTER SNAPSHOT

Purpose

To review the published highways and transport evidence relating to HOR001 and HOR004, to establish the existing transport environment including the privately owned estate roads, and to identify the principal planning issues arising.

Principal questions addressed

- What is the existing highway hierarchy, and where does the private estate road sit within it?
- What does the published transport evidence say about access, parking and servicing at HOR001?
- What transport evidence exists in relation to HOR004?
- How do the two proposals interact on the shared access?

Principal evidence reviewed

- Transport Statement submitted with Planning Application 26/00002/FUL
- Stage 1 Road Safety Audit and designer's response
- Submitted access, parking and servicing drawings
- Strategic transport evidence prepared for the emerging Local Plan
- Filed transfers dated 17 June 2010 and 16 August 2016

8.1 Introduction

Highways, transport and accessibility are central to the assessment of both proposals. The movement of vehicles, pedestrians and cyclists influences not only highway capacity but also residential amenity, safety, accessibility, environmental quality and the character of established communities.

The published evidence comprises detailed transport documentation supporting Planning Application 26/00002/FUL, together with strategic transport evidence prepared for the emerging Local Plan. Although prepared for different purposes, both address the relationship between future development and the existing network.

This chapter reviews that evidence within the wider context of the estate, and — for the first time in this series of reviews — records the ownership and management status of the roads concerned.

8.2 The existing highway hierarchy

The local network exhibits a clear hierarchy, and understanding it is fundamental to interpreting the published evidence.

Route	Function	Status
B280 Christ Church Road	Classified road forming the principal connection to the wider highway network	Adopted highway
Chertsey Lane	Two-way single carriageway running north from the B280 Christ Church Road; principal distributor serving this part of the former estate	Adopted highway
Cherry Tree Lane	Secondary access route serving adjoining land and distributing local traffic; proposed vehicular access for	Adopted highway

Route	Function	Status
	HOR001; filtered at its southern end	
Shared estate access road	Single private access road serving both Oak Glade and Cuddington Glade; carriageway width approximately 5.5 metres	Private; not adopted
Oak Glade estate roads	Internal roads, verges, footpaths and lighting within Oak Glade	Private; vested in Oak Glade Management Limited (title SY838750)
Cuddington Glade estate roads	Internal roads serving Cuddington Glade	Private

Table 8.1 — Highway hierarchy and status. Sources: submitted Transport Statement; HM Land Registry register of title SY838750 and the filed transfer dated 16 August 2016; hearing statement submitted to the Local Plan Examination.

The network as a whole accommodates residential traffic, pedestrians and cyclists, school-related movement associated with Stamford Green Primary School and Rosebery School, visitors to Christ Church, deliveries and servicing, refuse collection, emergency vehicles and recreational users accessing Epsom Common and the surrounding Green Belt.

8.3 The private estate road

Most readers will reasonably assume that the road serving Oak Glade and Cuddington Glade is a residential road like any other. The registered title evidence records that it is not.

The Transfer dated 16 August 2016 vested the Oak Glade estate roads — defined as all roads, verges and footpaths, including their lighting, constructed within the estate — in Oak Glade Management Limited. The register for title SY838750 records that those estate roads are subject to rights of way granted by transfers of adjoining land forming part of the estate, that the estate footpaths are subject to rights of way on foot, and that the land is subject to rights of drainage and rights in respect of the supply of water, gas, electricity and other services granted by transfers of estate land. Rights of entry for inspection and maintenance are reserved.

The scope of the rights reserved by that transfer is defined precisely, and three features of it bear directly on the proposals considered in this review.

- The right reserved is a right of way to pass, with or without vehicles, over and along the estate roads and roadway, together with a right to use and connect into existing service media. A right to pass is not a right to park, and the transfer reserves no right to park anywhere on the estate.
- The right is reserved for the benefit of the "Retained Land", defined as the land edged red on the transfer plan. The plan issued by HM Land Registry with its letter of 31 January 2017 identifies that land by brown tint. It is a small area, of the order of twenty metres by eight metres, located at the northern edge of the estate adjoining Cuddington Glade, and corresponding to a block of parking spaces. It is not the land to the south within which the HOR001 site falls.
- The benefit of the reserved rights is attached, according to the property register of title SY818290, to the land tinted pink on that title plan — again a defined part of the title rather than the whole.

A question of law arises from that definition which the review records but does not attempt to answer. Where a right of way is granted or reserved for the benefit of a defined parcel of land, there is long-standing authority that it may not be used to serve other land lying beyond that parcel. If the right reserved in 2016 was reserved for the benefit of a block of parking spaces at the northern edge of the estate, the question

whether it may be exercised in order to serve development on separate land to the south is one on which the parties will require legal advice. The published application material does not address it.

The Transfer dated 17 June 2010 records the corresponding arrangement on the Cuddington Glade side: a right of way over a defined accessway in common with the transferor and those authorised by it, granted until such time as the accessway should be adopted, and expressly conditional upon the transferee paying a fair and proper proportion, according to use, of the costs of repairing, maintaining, replacing, renewing, cleaning and lighting it.

The earliest transfer in the chain makes provision to the same effect. The Fourth Schedule to the Transfer dated 30 March 1998 contains a covenant by the transferee not to permit any vehicle owned by or under its control to stand or park on the accessways on the property or the retained land, nor to place goods or materials on those accessways or the adjoining footpaths so as to obstruct or impede the free passage of pedestrians or vehicles. A prohibition on parking on the estate accessways has therefore been a feature of this estate since 1998.

Four consequences follow, and each is directly relevant to the transport evidence.

- The road is privately owned and privately maintained. Repair, resurfacing, lighting and renewal are funded by the residents through their management companies, not by the highway authority.
- It is a shared asset. The 2010 transfer contemplates proportionate contribution according to use, and the 2016 transfer reserves rights of way over the estate roads for the benefit of retained land.
- It was laid out to serve two small residential communities. The carriageway is approximately 5.5 metres wide, which is appropriate to twenty-eight households with grouped parking courts and minimal through movement.
- Damage arising from third-party use falls, in the first instance, upon the owners of the road.

> **OBSERVATION**
>
> - Representations submitted through the statutory process record that the published documents do not appear to explain how damage, maintenance or long-term repair of this privately owned infrastructure would be managed or funded, whether during construction or in operation.
> - The review records that observation. It does not suggest that the existence of private ownership is itself an impediment to development, nor that the rights necessary to use the road are absent.

8.4 HOR001 — the published transport evidence

Planning Application 26/00002/FUL is supported by a Transport Statement, together with a Stage 1 Road Safety Audit and the designer's response to it. The submitted documentation addresses site access, traffic generation, parking provision, servicing, highway safety, visibility, pedestrian accessibility, sustainable transport and operational vehicle movements.

The published access strategy comprises:

- direct pedestrian access to Cherry Tree Lane, with a 1.8 metre footway within the site;
- vehicular access to a 20-space car park taken across the footway on Cherry Tree Lane, with the footway carried continuously across the access so that vehicles give way to pedestrians, as requested by the highway authority;
- a loading area, accessed across the footway, for service, delivery and emergency vehicles, arranged so that a refuse vehicle can reverse in and leave in forward gear; and

- cycle parking accessed via the same vehicular access.

Because Cherry Tree Lane is filtered at its southern end, all vehicular access to the site would be taken from the north.

In addition to the 20 on-site spaces, the application proposes the use of eight spaces within Oak Glade's parking area. As recorded in Chapters 6 and 12, the bays at Oak Glade were sold with the individual houses; the eight relied upon are a separate block at the northern edge of the estate, retained on the 2016 transfer. Representations record concern that the resulting provision is insufficient for staff across shift changes, visitors, servicing and operational requirements, and that the consequence would be overspill parking and increased congestion on Cherry Tree Lane — a road used daily by residents, by parents and children attending Stamford Green Primary School and Rosebery School, by visitors to Christ Church and by people accessing Epsom Common.

The published Road Safety Audit process records that a Construction Transport Management Plan and a Parking Plan were identified as matters capable of being secured by condition.

8.5 HOR004 — the published transport evidence

HOR004 is not accompanied by a site-specific transport assessment. The published evidence comprises strategic transport work prepared to inform the emerging Local Plan and to evaluate the suitability of proposed allocations across the Borough.

The transport evidence therefore addresses the strategic implications of potential future development rather than the operation of a defined scheme. Should the allocation be confirmed and a scheme come forward, a detailed transport assessment appropriate to the form of development proposed would be expected.

Representations record an estimate that development of approximately fifty dwellings could generate in the order of seventy-five to one hundred additional resident vehicles, before accounting for visitors and service traffic. That estimate is not derived from published technical evidence and is recorded here as a representation rather than as a finding.

8.6 The combined position on the shared access

The two proposals interact most directly on the shared private access road. It is worth setting out plainly what that road is being asked to carry.

Demand on the shared access	Present	If both proposals proceed
Residential units served	28 households	28 households plus approximately 50 dwellings
Institutional development served	None	70-bed care home operating 24 hours a day
Character of movement	Residential only; parking contained communally; minimal through movement	Residential, plus additional movement associated with the care home and, in due course, with HOR004
Construction traffic	None	Heavy goods vehicles, concrete deliveries and contractor traffic for one development (HOR004)
Carriageway width	Approximately 5.5 metres	Unchanged

Demand on the shared access	Present	If both proposals proceed
Maintenance liability	Residents, through their management companies	Not addressed in the published documents identified by this review

Table 8.2 — Demand on the shared private access road. Sources: submitted Transport Statement; published allocation material; hearing statement submitted to the Local Plan Examination. The figure of approximately fifty dwellings is the published allocation assumption.

No engineering assessment is offered here of whether that is achievable, and it is not asserted that it is not. Three matters are recorded.

1. The road was laid out to serve two small residential communities and is approximately 5.5 metres in carriageway width. Nothing in the published evidence proposes to widen or otherwise alter it.
2. The published evidence assesses the transport effects of HOR001 in detail and the transport implications of HOR004 strategically. No published assessment has been identified of their combined effect on this road, which is the one asset both proposals must use.
3. The maintenance mechanism recorded in the 2010 and 2016 transfers — proportionate contribution "according to use" — was designed for the estate as it then stood. The published documents identified by this review do not explain how construction damage or accelerated wear arising from either development would be managed or funded.

The significance of the third point is practical rather than legal. Where a road is adopted, wear falls on the highway authority. Here it does not. Any shortfall falls on twenty-eight households.

8.7 Parking provision assessed against published standards

Parking is the matter on which the published evidence and the representations diverge most sharply, and it is capable of being tested arithmetically.

Representations submitted on behalf of the commissioning parties assess the requirement against Surrey County Council parking guidance for a residential institution (Use Class C2), applying a ratio of one space per three bedrooms for visitors and one space per staff member on duty. On that basis a 70-bed facility is assessed as requiring between 51 and 59 spaces: approximately 23 visitor spaces together with a peak staffing level estimated at 28 to 35 personnel across nursing, care, kitchen, housekeeping and administrative functions.

The representations further record that this understates the peak. In a care setting a departing shift cannot leave until the incoming shift has been briefed and has commenced duties, so for a period of thirty to sixty minutes at each handover — typically around 07:00 and 19:00 — the number of staff on site approximately doubles. During those windows the assessed requirement rises to between 60 and 70 spaces.

Scenario	Assessed requirement	Proposed provision	Shortfall
Standard SCC ratios	51–59 spaces	20 on site (28 including Oak Glade spaces)	Over 50%
Reduced 1:2 staff ratio	38–41 spaces	20 on site (28 including Oak Glade spaces)	At least 18 spaces
Shift handover peak	60–70 spaces	20 on site (28 including Oak Glade spaces)	Over 60%

Table 8.3 — Parking requirement as assessed in representations, against the provision proposed in the application. Source: representations submitted in respect of Planning Application 26/00002/FUL, applying Surrey County Council guidance for Use Class C2. These figures are the representors' assessment and have not been independently verified for this review.

The representations also record that once mandatory disabled bays (approximately six) and an ambulance or service bay are deducted, fewer than thirteen general spaces would remain for a peak staff complement of thirty or more together with visitors to seventy residents; and that no contingency exists for the community events — family open days, seasonal concerts and similar — that a facility of this kind routinely hosts.

Two contextual matters bear on the credibility of the provision proposed. The first is car dependency: the site is approximately a twenty-minute walk from Epsom station and is served by limited hopper bus routes which do not operate at the frequencies or hours required by twenty-four hour shift patterns. The second is the location and status of the eight additional spaces. As recorded at Chapter 12, the parking spaces at Oak Glade were sold with the individual houses and are in individual freehold ownership; the eight spaces relied upon are a separate block at the northern edge of the estate, adjoining Cuddington Glade, retained on the 2016 transfer. They lie at the opposite end of the estate from the application site, and Condition 9 of the 2014 permission requires the parking area to be used and retained exclusively for its designated use.

These are the representors' figures, and the Local Planning Authority will form its own view with the benefit of the highway authority's advice. They are recorded because they are arithmetical, they are derived from published standards, and they are capable of being checked.

8.8 Effects on community infrastructure

National policy provides that development should be refused on highways grounds where the residual cumulative impacts on the road network would be severe. Two effects recorded in the representations engage that test directly, and both concern the loss of existing community infrastructure rather than congestion alone.

The first is the proposed introduction of waiting restrictions on Cherry Tree Lane to manage the traffic conflicts arising from the development. Representations record that the restrictions proposed would remove the designated school coach pick-up point and the principal safe drop-off and collection area serving Stamford Green Primary School, displacing that activity onto surrounding roads.

The second is the loss of the on-street parking used by elderly, disabled and less mobile parishioners attending Christ Church for services, funerals and weddings.

A third matter concerns the composition rather than the volume of traffic. Cherry Tree Lane is the principal walking route for pupils attending Stamford Green Primary School and Rosebery School, and an established access route to Epsom Common for cyclists and horse riders. The development would introduce laundry and clinical waste collections, industrial food deliveries, refuse vehicles and emergency ambulances into that environment, with vehicles required to manoeuvre across a footway carried continuously over the access.

OBSERVATION

- The published Transport Statement addresses vehicle capacity and access geometry. The representations raise a different question: whether the mitigation proposed to make the access work would itself remove community infrastructure on which existing users depend.
- That is a matter the Local Planning Authority is required to weigh, and it is capable of being resolved

only by reference to the specific waiting restrictions proposed.

8.9 Accessibility

The study area benefits from established pedestrian, cycle and vehicular connections linking the residential communities with local facilities and the wider network. The published evidence considers accessibility by private car, walking, cycling and public transport.

Beyond everyday residential movement, the surrounding network supports journeys associated with schools, recreation, Epsom Common, local employment and community facilities. Accessibility should therefore be understood not only as a matter of highway capacity but as a component of the wider residential environment.

8.10 Transport and place

The published evidence recognises that transport infrastructure performs functions beyond accommodating traffic. The surrounding network contributes directly to residential amenity, pedestrian safety, accessibility, landscape character, environmental quality, connectivity between neighbourhoods and the day-to-day functioning of established communities.

Within Oak Glade and Cuddington Glade those relationships are particularly pronounced, because the residential environment was created within the landscape of the former Manor Hospital estate rather than through conventional suburban expansion, and because the containment of parking in communal areas has produced an unusually low level of vehicle movement within the communities themselves.

8.11 Principal themes

Review of the published transport evidence identifies the following recurring themes: access arrangements; highway hierarchy and the status of private roads; parking provision and the proposed use of third-party spaces; traffic generation; pedestrian and cyclist movement, particularly in the context of school journeys; highway safety; servicing and refuse collection; construction traffic and its management; interaction with surrounding residential communities; and cumulative transport effects on the shared access.

These matters are drawn together in Chapter 13.

KEY MESSAGES

- The hierarchy runs from the B280 Christ Church Road, through Chertsey Lane, to Cherry Tree Lane, and then to the private estate roads.
- The road serving Oak Glade and Cuddington Glade is privately owned, privately maintained, approximately 5.5 metres wide and shared between the two communities.
- HOR001 is supported by a detailed Transport Statement and Road Safety Audit; HOR004 is supported by strategic evidence only.
- The published parking strategy for HOR001 relies in part on eight spaces within land owned by Oak Glade Management Limited.
- No published assessment has been identified of the combined effect of both proposals on the shared private access road.

Chapter 9 Landscape Character, Visual Impact and Green Belt Openness

CHAPTER SNAPSHOT

Purpose

To review the published landscape and visual evidence relating to HOR001 and HOR004, explaining the landscape character of the estate and the contribution of the Metropolitan Green Belt to its openness, setting and visual identity.

Principal questions addressed

- What characterises the landscape within which both sites sit?
- How does the published evidence assess visual effects and openness?
- What landscape evidence exists for each site, and at what level of detail?
- How does landscape character extend beyond the individual site boundaries?

Principal evidence reviewed

- Landscape and Visual Impact Assessment submitted with Planning Application 26/00002/FUL
- Submitted landscape and soft landscape plans
- Green Belt Study Update and Green Belt Topic Paper (TP02)
- Local Plan landscape evidence and site assessment material

9.1 Introduction

The Historic Horton Estate is defined not only by its planning history but by its physical character. Mature woodland, open grassland, tree-lined boundaries and the spatial relationship between developed and undeveloped land combine to create a landscape that has evolved over more than a century.

The published evidence includes landscape and visual assessments prepared for both the planning application and the emerging Local Plan. This chapter reviews that evidence and explains how landscape character and Green Belt openness contribute to the planning context. It does not undertake an independent landscape assessment.

9.2 The existing landscape

The landscape surrounding HOR001 and HOR004 is characterised by:

- extensive mature tree cover, including protected trees;
- open and semi-natural grassland;
- established woodland belts forming the edges of the former estate;
- surviving structural elements of the former Horton Hospital estate;
- well-defined residential edges at Oak Glade and Cuddington Glade; and
- significant areas of Metropolitan Green Belt continuous with Epsom Common.

These features create a landscape in which development is interspersed with substantial areas of open land — the characteristic that gives the area its distinctive transitional quality.

9.3 Landscape character

The published evidence describes a landscape whose character derives from the interaction between natural features and historic institutional development. Important characteristics include the continuity of mature vegetation; a long-established landscape structure; the visual transition between residential areas and countryside; surviving elements of the former hospital estate; and the contribution of Green Belt to the wider setting.

These characteristics provide the context for the site-specific assessments that follow.

9.4 Visual character and views

The published landscape evidence considers the visual relationship between the sites and their surroundings, including local views; longer-distance views; the screening effect of existing vegetation and its seasonal variation; visual containment; and the relationship between built form and open countryside.

The extent to which these characteristics influence visual perception is examined within the submitted Landscape and Visual Impact Assessment and the supporting Local Plan evidence.

9.5 Green Belt openness

National planning policy identifies openness as an essential characteristic of the Green Belt. The published evidence considers openness through a combination of spatial, visual and landscape factors, including the extent of undeveloped land; the relationship between buildings and open countryside; landscape continuity; visual separation; existing vegetation; and the contribution of the land to the wider Green Belt.

This review reports how those factors are described in the published evidence. It does not undertake an independent assessment of openness.

One matter is recorded because it arises directly from the published documents. The current assessment of HOR001 describes the proposal as a natural rounding off of the existing built form. Representations record difficulty in reconciling that characterisation with a three-storey institutional building of seventy bedrooms operating continuously, and with the earlier conclusion that the limited quantum of development available from a small site offered little benefit when weighed against the impact on openness. Both the characterisation and the representations made about it are recorded here, and the point is taken up again in Chapter 13.

9.6 HOR001 — the published landscape evidence

The planning application is supported by a Landscape and Visual Impact Assessment together with landscape and soft landscape plans. The published documentation addresses existing landscape character; proposed landscape mitigation; visual effects; retained vegetation; proposed planting; the relationship with neighbouring residential areas; and integration with the surrounding landscape.

Two features of the site warrant particular attention in reading that evidence. The first is the presence of protected trees on and adjoining the site, and the relationship between the proposed building footprint and their root protection areas. The second is the three-storey height of the proposed building relative to the predominantly two-storey form of Oak Glade and to the height of the retained vegetation on which visual containment would depend.

9.7 HOR004 — the published landscape evidence

The landscape evidence relating to HOR004 is strategic and forms part of the Local Plan evidence base. Rather than assessing a defined proposal, the published documents examine landscape sensitivity; Green Belt contribution; strategic landscape character; site context; and the relationship between the site and the wider Borough.

The Council's December 2024 assessment recorded that the site blends into the surrounding landscape by reason of its proximity to Epsom Common, and identified its semi-natural grassland and protected trees. Those are physical characteristics of the site. A site-specific Landscape and Visual Impact Assessment would ordinarily be required in support of any future planning application.

9.8 Landscape beyond the site boundary

As set out in Chapter 2, landscape character does not stop at an application boundary. The published evidence demonstrates that both sites form part of a wider landscape whose defining characteristics include mature woodland, open Green Belt, surviving historic estate structure and established residential communities.

This is where the estate's ownership history is again relevant, though modestly. The mature landscape framework surrounding Oak Glade and Cuddington Glade is not incidental planting associated with recent housing. It is the surviving structure of a planned institutional landscape, retained through successive disposals because each transfer conveyed built parcels while leaving the landscape framework in the retained land. That framework has therefore outlived the estate that created it, and it is the same framework that both proposals would engage.

KEY MESSAGES

- The landscape framework is the surviving structure of a planned institutional estate, not incidental modern planting.
- Both sites lie at the transition between built form and open Green Belt continuous with Epsom Common.
- HOR001 is supported by a site-specific Landscape and Visual Impact Assessment; HOR004 is supported by strategic landscape evidence only.
- Openness is assessed in the published evidence through spatial, visual and landscape factors considered together.
- The characterisation of HOR001 as a natural rounding off of existing built form is recorded, together with the representations made about it.

Chapter 10 Ecology, Biodiversity and Trees

CHAPTER SNAPSHOT

Purpose

To review the published ecological, biodiversity and arboricultural evidence relating to HOR001 and HOR004, and to explain the role of the estate's landscape framework as an ecological network.

Principal questions addressed

- What ecological interest is recorded in the published evidence?
- What is the status and significance of the trees on and around the sites?
- How does the estate function as an ecological network?
- What ecological evidence exists for each site, and at what level of detail?

Principal evidence reviewed

- Ecological information submitted with Planning Application 26/00002/FUL
- Arboricultural material and submitted tree information
- Habitats Regulations Assessment Addendum (COUD_031)
- Local Plan ecology evidence and site assessment material

10.1 Introduction

Ecology, biodiversity and trees are material considerations in the assessment of both proposals, and are among the matters most directly affected by the estate's landscape framework described in Chapters 2 and 9.

This chapter reviews the published ecological and arboricultural evidence. It does not undertake survey work and does not express an ecological opinion.

10.2 The estate as an ecological network

The retained woodland, tree belts, grassland and hedgerows across the former estate function collectively rather than as isolated features. They provide continuous habitat and movement corridors linking the estate to Epsom Common and to the wider Green Belt beyond.

The designations affecting Epsom Common are material to that relationship. Representations record that the land adjoining HOR001 includes a Site of Special Scientific Interest and Ancient Woodland, and that the site functions as a wildlife corridor connecting to them. Those designations bear on this chapter in the ordinary way, and they bear additionally on the grey belt question considered at Chapter 4, because national policy excludes from grey belt land where designations provide a strong reason for restricting development.

The status and precise extent of the designations adjoining the site should be confirmed against the published record, and the review recommends that this be done, since the point carries weight in two separate parts of the assessment.

Representations record that residents regularly observe deer — recorded on trail cameras as a daily occurrence — together with foxes, badgers, bats, owls and moles within and around the two communities, and a range of birds including song thrush, great spotted woodpecker, finches and tits, as well as butterflies, bees and stag beetle. These are records of observation rather than survey data, and are recorded as such.

They are consistent with the semi-natural character described in the Council's own published site assessment material, and they identify species which would ordinarily require survey at application stage.

Representations further record concern about external lighting: that the submitted lighting layout would spill towards the woodland edge, and that continuous artificial lighting adjoining foraging habitat affects nocturnal species differently from lighting in a conventional suburban setting. Lighting is normally capable of being controlled by condition, and the review records the concern as one for the ecological assessment rather than as a finding.

The significance of the network for planning purposes is that its value depends on continuity. Habitat connectivity is a function of the whole, and effects on it are therefore cumulative in character — a point returned to in Chapters 5 and 13.

10.3 Trees

Mature trees are among the defining features of the estate and of both site surroundings. The published site assessment material records protected trees on and adjoining HOR004, and the landscape and arboricultural material submitted with the HOR001 application addresses the trees on and adjoining that site.

The matters that ordinarily determine the outcome for trees on a constrained site are the extent of retention, the relationship between built form and root protection areas, construction methodology and access routes, and the arrangements for long-term protection and management once development is occupied. In respect of HOR001, that information is available in the submitted material. In respect of HOR004, it is not yet available, because no scheme has been published.

Representations record concern that development of approximately fifty dwellings at HOR004 would place pressure on mature protected trees both during construction and over the lifetime of the development, and that mature landscape features and Green Belt buffers, once lost, cannot readily be recreated.

10.4 HOR001 — the published ecological evidence

The planning application is supported by ecological information addressing the site's habitat, its potential to support protected species, mitigation and enhancement, and biodiversity net gain. That material forms part of the evidence before the Local Planning Authority and would ordinarily be the subject of consultation with the county ecologist and relevant statutory bodies.

A live application is supported by site-specific ecological evidence and that the adequacy of that evidence is a matter for the determining authority.

10.5 HOR004 — the published ecological evidence

The evidence supporting the proposed allocation is strategic. The Habitats Regulations Assessment addendum considers effects on European sites, including in-combination effects, within the scope of that regime. Site assessment material records the site's semi-natural grassland character and the presence of protected trees.

Detailed survey work — including seasonal survey for protected species, an arboricultural impact assessment and a biodiversity net gain assessment for a defined layout — would fall to be provided at application stage.

10.6 Observations

OBSERVATIONS

- The ecological value of the estate derives substantially from the continuity of its landscape framework rather than from the intrinsic value of any single parcel.
- Effects on habitat connectivity are therefore inherently cumulative and are not fully captured by parcel-by-parcel assessment.
- HOR001 is supported by site-specific ecological and arboricultural evidence; HOR004 is not yet at that stage.
- The presence of protected trees is recorded in the Council's own published assessment of HOR004 and is unchanged since December 2024.

KEY MESSAGES

- The estate functions as a connected ecological network linking to Epsom Common.
- Mature and protected trees are a defining constraint at both sites.
- Site-specific ecological evidence exists for HOR001; for HOR004 it would follow at application stage.
- Connectivity effects are cumulative by nature and are considered further in Chapter 13.

Chapter 11 Residential Amenity and Community Impact

CHAPTER SNAPSHOT

Purpose

To review the published evidence relating to the potential effects of HOR001 and HOR004 on the living conditions of neighbouring residents, including privacy, outlook, noise, lighting, parking and activity, and on the character of the two established communities.

Principal questions addressed

- What is the existing residential character, and what is the benchmark against which change would be measured?
- What is the physical relationship between the proposals and existing homes?
- What does the published evidence say about privacy, noise, lighting and activity?
- What effects arise from the operational nature of the proposed use?

Principal evidence reviewed

- Submitted plans, elevations and sections for Planning Application 26/00002/FUL
- Noise, lighting and amenity information submitted with the application
- Representations and hearing statements submitted through the statutory process
- Local Plan site assessment material

11.1 Introduction

Residential amenity is a fundamental planning consideration. This chapter reviews the published evidence relating to amenity and community effects; it does not carry out an independent assessment, and it does not seek to determine whether any effect would be acceptable.

11.2 The existing residential character

An assessment of change requires a benchmark. The published evidence and the representations submitted through the statutory process describe the existing character of the two communities in consistent terms:

- twenty-eight households in total across Oak Glade and Cuddington Glade;
- low-density development of predominantly two-storey houses;
- grouped parking courts, with the consequence that no vehicles move within the residential developments themselves;
- private estate roads and communal landscaped areas;
- rear private gardens abutting the estate edges;
- mature landscaping and an immediate relationship with open Green Belt; and
- low ambient levels of traffic, noise and artificial light.

The relevance of that description is not that it is attractive but that it is unusually quiet by suburban standards. The baseline against which any change in activity, noise or lighting would be experienced is correspondingly low.

11.3 HOR001 — the relationship with existing homes

The published application material permits the relationship between the proposed building and existing homes to be described factually. The matters relevant to that description are:

- the three-storey height of the proposed building relative to the predominantly two-storey form of Oak Glade;
- the position of the building relative to the southern edge of Oak Glade and the separation distances achieved;
- the number, position and orientation of upper-floor windows, and whether they serve habitable rooms, circulation space or staff areas;
- the position of the car park, loading area and refuse collection point relative to existing dwellings and gardens;
- the location of external lighting and its likely operating hours; and
- the pattern of activity associated with staff shift changes, visitor movements, deliveries and emergency access across a twenty-four hour cycle.

These are descriptive matters. Whether the relationship is acceptable is a judgement for the Local Planning Authority, informed by the submitted plans and by any noise and lighting information provided.

11.4 Separation distances and the Council's pre-application advice

The Council's pre-application advice in respect of this site addressed separation directly. Representations record that the advice stated that a window-to-window separation distance of 21 metres should be retained in order to ensure good neighbouring amenity.

Two observations follow from that advice, and both are recorded in the representations.

The first concerns height. The 21-metre standard is conventionally applied between two-storey dwellings. The proposed building is three storeys. A separation appropriate to two-storey development does not necessarily address the downward sightlines created by a third floor, and the standard is not self-adjusting.

The second concerns what the pre-application advice itself contemplated. Representations record that the advice went on to suggest that elevations orientated towards neighbouring properties could be fitted with privacy screening to prevent prolonged direct overlooking of neighbouring rear curtilages. The significance attached to that passage in the representations is that the risk of prolonged direct overlooking was identified by the Local Planning Authority in advance, and that screening is a mitigation of a risk rather than the absence of one.

The submitted elevations and floor plans are the primary evidence on both points, and the review does not substitute its own measurement for them.

11.5 Privacy and overlooking

Privacy is the amenity matter most frequently raised in the representations submitted in respect of both proposals, and in relation to HOR001 the representations identify specific properties.

Representations record that the main mass of the proposed building directly faces 1, 2, 3, 4 and 15 Oak Glade, and that the continuous three-storey form of the north and south wings would present an unbroken elevation towards them, in contrast to the existing residential layout in which gaps between houses maintain a sense of openness. The concerns recorded are of overbearing presence, loss of outlook, overshadowing and — these properties being westerly facing — loss of evening sunlight.

Separately, representations record that the position of the car park creates a line of sight towards the rear elevations of 13, 14 and 15 Oak Glade, and identify overlooking of children's bedrooms as a safeguarding concern as well as a privacy one. The same relationship carries noise and light: vehicle doors, engines, alarms and conversation at a car park serving a facility which operates continuously, together with headlights sweeping those elevations on arrival and departure, including at night.

These are matters for assessment by the Local Planning Authority against the submitted drawings. They are recorded because they are specific, they identify particular properties and elevations, and they are therefore capable of being tested rather than merely asserted.

In relation to HOR004, representations record that indicative layout material suggests overlooking towards existing gardens and habitable rooms in both Oak Glade and Cuddington Glade, and towards the Stamford Green Primary School playing fields. As no layout has been published, those matters would fall to be assessed at application stage.

11.6 HOR004 — the amenity position

HOR004 is at allocation stage and no layout has been published. A full assessment of amenity effects is therefore not possible from the material examined, and this section records what is presently known and what would fall to be assessed.

The site adjoins the eastern boundary of Cuddington Glade and the eastern side of Oak Glade. Approximately fifty dwellings on land of that extent implies a density materially higher than that of the two existing communities, which together comprise twenty-eight households. Representations record concern that indicative material suggests dwellings backing onto existing rear gardens and habitable rooms in both communities, and towards the Stamford Green Primary School playing fields.

The matters which would require assessment at application stage are:

- separation distances between proposed and existing dwellings, measured window to window, and their adequacy given the two-storey form of the existing houses;
- the orientation of upper-floor windows relative to existing rear gardens and habitable rooms;
- the effect on the school playing fields, and any safeguarding considerations arising;
- the loss of the open outlook presently enjoyed from the eastern edge of both communities;
- noise and lighting during construction and in occupation, assessed against the low baseline described at 11.2; and
- the cumulative amenity effect of development on both sides of Oak Glade, HOR001 lying to the south and HOR004 to the east.

The last of those is the matter least likely to be captured by an application-stage assessment of either site alone, and it is the reason the two proposals are considered together in this review.

11.7 Noise, activity and lighting

The published evidence addresses noise and lighting insofar as they arise from the HOR001 proposal. The characteristics relevant to that assessment are inherent to the use: a care home operating continuously generates staff arrivals and departures at shift changes including at night, visitor movements throughout the day and evening, deliveries and clinical servicing, refuse collection, plant and ventilation equipment, and periodic emergency vehicle attendance.

Those characteristics are recorded not as objections but as descriptions of the use proposed. Their significance depends on the baseline described at paragraph 11.2, and on the mitigation secured through the submitted scheme and any conditions imposed.

11.8 Parking and its amenity consequences

Parking has amenity as well as transport dimensions. The proposal to use eight spaces within Oak Glade's parking area at the northern edge of the estate would, if implemented, introduce non-resident vehicle movement along the full length of the estate road and into parking courts presently used only by residents. Representations record concern that the level of provision would result in overspill parking within the estate and on Cherry Tree Lane.

The transport dimension of that issue is considered in Chapter 8. The amenity dimension — the introduction of movement, headlights and activity into communal areas at present used exclusively by residents — is recorded here.

11.9 Community character

Beyond the effects on individual dwellings, the published representations describe a concern about the character of the two communities as a whole: the quiet, the low levels of movement, the immediate relationship with open land and the presence of wildlife.

Community character is a legitimate planning consideration, though a less readily measurable one than privacy or noise. The concern is recorded, together with the fact that the characteristics said to constitute that character — grouped parking courts, minimal through movement, an edge-of-Green-Belt location and a mature landscape setting — are documented rather than merely asserted.

11.10 Construction effects

Representations record that construction of either or both proposals would require heavy goods vehicles, concrete deliveries and contractor traffic to use the shared private access road serving both communities, and that the published documents do not appear to explain how damage to that privately owned infrastructure would be managed or funded.

The published Road Safety Audit process for HOR001 records that a Construction Transport Management Plan was identified as a matter capable of being secured by condition. Whether the scope of such a plan would extend to the maintenance of privately owned roads outside the application site is a matter for the Local Planning Authority.

OBSERVATIONS

- The amenity baseline in both communities is unusually low in terms of movement, noise and light, principally because parking is communal and through movement minimal.
- The proposal at HOR001 is of greater height than the surrounding built form and would operate continuously.
- Privacy and overlooking are the matters most frequently raised in representations in respect of both proposals.
- Amenity effects arising from HOR004 cannot presently be assessed from published material, because no layout has been published.
- Construction effects on the shared private access road are not addressed in the published documents

identified by this review.

KEY MESSAGES

- Amenity effects must be judged against an unusually quiet existing baseline.
- The submitted plans are the primary evidence on privacy and overlooking at HOR001.
- Amenity assessment of HOR004 awaits a published layout.
- The operational characteristics of a 24-hour care home are inherent to the use and are properly part of the amenity assessment.

Chapter 12 Infrastructure, Utilities and Community Services

CHAPTER SNAPSHOT

Purpose

To review the published evidence relating to infrastructure, utilities and community services, and to explain the status of the privately owned estate infrastructure on which both proposals would depend.

Principal questions addressed

- What infrastructure serves the estate, and who owns and maintains it?
- What does the published evidence say about capacity and provision?
- How are drainage and flood risk addressed?
- Why does privately owned infrastructure warrant particular attention here?

Principal evidence reviewed

- Infrastructure Delivery Plan and Local Plan infrastructure evidence
- Drainage and flood risk information submitted with Planning Application 26/00002/FUL
- Registers of title SY838750 and SY788683
- Filed transfers dated 17 June 2010 and 16 August 2016

12.1 Introduction

Infrastructure is a fundamental component of sustainable development. Alongside environmental and planning considerations, the published evidence considers whether existing and planned infrastructure can support future development within the estate.

This chapter reviews that evidence and, in addition, records a characteristic of this particular estate that is not apparent from the planning documents alone: that a significant part of the infrastructure serving it is privately owned, privately maintained and shared between successive phases of development.

12.2 Existing infrastructure

The estate is served by an established network of infrastructure that has evolved through successive phases of redevelopment. The published evidence identifies infrastructure including local highway connections; pedestrian and cycle routes; public transport; water supply; foul drainage; surface water drainage; electricity; telecommunications; emergency services; and community facilities.

Much of that network has its origins in the institutional estate. Roads, drainage runs and service media laid out to serve a hospital campus have been progressively adapted to serve residential communities, and successive disposals have divided ownership of that network without dividing its function.

12.3 Privately owned estate infrastructure

This section records what the registered title evidence establishes about the ownership and management of the estate infrastructure. Its purpose is explanatory, and the limits of that purpose are stated at paragraph 12.7.

The Transfer dated 16 August 2016 vested in Oak Glade Management Limited the estate roads — defined as all roads, verges and footpaths, including their lighting — together with the estate gardens and the existing service media, defined broadly to include all media for the supply or removal of heat, electricity, gas, water,

sewage, energy, telecommunications, data and other services, and the ancillary structures and equipment. The transfer separately defines the estate sewers as those surface water and foul sewers within the estate that are intended to become public sewers.

Out of that transfer, the transferor excepted and reserved, for the benefit of the retained land, a right of way over the estate roads and the roadway and the right to use and connect into any existing service media on the estate.

The Transfer dated 17 June 2010 makes corresponding provision on the Cuddington Glade side. It granted the land sold the right to connect to and use service media on the retained land and to lay new service media beneath the accessway, subject to the transferor's prior written consent, to proportionate contribution to the cost of repair, maintenance, replacement, renewal and cleaning of shared apparatus, and to an express reservation permitting consent to be withheld where the transferor reasonably considered that the media would be overloaded by the additional passage of services. Reciprocal rights were reserved for the benefit of the retained land.

Three features of that arrangement are relevant to the assessment of further development.

- Capacity is addressed contractually as well as physically. The 2010 transfer expressly contemplates that consent to connect may be withheld where existing media would be overloaded.
- Maintenance is funded by contribution according to use, through the residents' management companies rather than through a statutory undertaker or highway authority.
- The assets are shared. Successive phases of development on the estate connect into apparatus provided for earlier phases rather than into wholly new infrastructure.

12.4 Utilities

The published planning documentation considers the capacity and provision of utility services required to support development, including water supply, foul sewerage, surface water management, electricity infrastructure, telecommunications and any necessary utility diversions.

Detailed design and implementation of utility infrastructure forms part of the delivery process for individual developments and would ordinarily be secured through condition or through agreement with the relevant undertaker.

12.5 Drainage and flood risk

The published evidence includes assessment of drainage and flood risk, addressing existing drainage arrangements; sustainable drainage measures; surface water management; flood risk; attenuation; maintenance responsibilities; and long-term management.

Two matters are recorded in the representations and are noted here because both concern the reliability of the underlying data rather than the design of the strategy.

The first is that, in correspondence dated 6 January 2026, the applicant's architects are recorded as having confirmed that contractors entered private land in November 2025 without notice or consent in order to attempt a drainage survey, and that the drainage strategy nonetheless remains based in part on assumption rather than on verified survey data. The review makes no finding as to what occurred. The planning relevance is narrow but real: where a drainage strategy for a site served by privately held estate sewers rests on assumed rather than surveyed connection points, the assumptions should be identified and, if necessary, secured by condition.

The second is that representations record a documented history of low water pressure and pressure on the local sewerage network affecting existing residents, referring to a Thames Water case reference dated October 2017. A seventy-bed institution carries continuous water and waste demands materially different from those of the twenty-eight households presently served. Whether existing capacity is adequate is a matter for the statutory undertaker, and the review records the point so that it may be put to them.

Maintenance responsibility warrants particular attention on this estate. Where surface water is discharged to, or attenuation is provided within, assets forming part of the privately held estate infrastructure, the long-term maintenance obligation falls on the management companies unless alternative arrangements are secured. That is capable of being addressed through the planning process, and the review records it so that it can be.

12.6 Restrictions recorded against the estate: the present position

Representations submitted in respect of the planning application rely upon restrictions said to affect the use of the estate roads and parking areas. The position on each has developed as further title evidence has been examined, and is recorded here as it now stands.

The restriction on trade or business

Representations state that a covenant prohibiting trade or business affects the land, and locate that covenant in the charges register of title SY838750. That location is not correct: the entry cited concerns rights of way over the estate roads, and the register does not set out the wording of any such covenant.

A covenant in those terms does, however, appear in the transfers of the individual houses. The transfer of one plot examined for this review contains a covenant by the transferee, given for the benefit of the estate and each and every part of it and every other person owning land forming part of the estate, not to use the property for any purpose other than as a single private dwelling or to carry on any trade or business at the property. The corresponding covenant panels of the 2016 estate transfer are, by contrast, blank.

Three qualifications should be recorded. The covenant is given by the plot owner and burdens the plot; it restrains the use of the burdened land rather than the exercise of a right of way across it. The covenant examined is expressed to be subject to a right reserved to the transferor to vary and release it, the terms of which have not been examined. And a single plot transfer does not establish that the covenant is in the same terms across the estate.

The condition restricting the parking area

The parking area at Oak Glade was created pursuant to the planning permission dated 25 September 2014 for the conversion of five blocks to fifteen residential units. Condition 9 of that permission provides:

> **CONDITION 9 OF THE 2014 PERMISSION**
>
> The development shall not be occupied until space has been laid out within the site in accordance with the approved plans for a maximum of 26 cars to be parked and cycle storage for a minimum of 15 cycles. The parking area shall be used and retained exclusively for its designated use.
>
> Reason: In order that the development should not prejudice highway safety nor cause inconvenience to other highway users, and to accord with the provisions of the relevant policies of the Epsom and Ewell District Wide Local Plan.

Two features of that condition bear on the current application. The designated use of the parking area is the parking of cars in connection with the fifteen residential units for which the permission was granted; the condition requires the area to be used and retained exclusively for that use. And the condition permits a maximum of twenty-six cars to be parked, a figure which should be checked against the number of spaces actually laid out.

The proposal to use eight of those spaces to serve a seventy-bed care home operating continuously is, on the face of it, a use other than the designated use. Whether that engages Condition 9, and if so with what consequence, is a matter for the Local Planning Authority. The review records the condition because, unlike the private rights considered elsewhere in this chapter, a condition on a subsisting permission is a matter of planning control rather than of private arrangement.

The ownership of the parking spaces

The parking spaces at Oak Glade were sold with the individual houses rather than retained in common ownership. The sale agreement for one plot, dated 3 May 2016, describes the property sold as that house "and car parking spaces 25 and 26", and the title plan for the resulting registered title shows two separate parcels edged red: the house and garden, and a detached parcel of approximately six and a half metres by six and a half metres corresponding to those spaces.

It follows that the parking spaces at Oak Glade are, for the most part, individual freehold parcels in the ownership of individual householders. There is no parking area in the sense of land held by the management company for the general use of residents.

A block of spaces at the northern end of the estate, adjoining Cuddington Glade, was not sold with any house. That block formed part of the land retained by the transferor on the 2016 transfer and is understood to be in the ownership of Oak Glade Epsom Limited. The eight spaces referred to in the application are understood to be those spaces.

THE CONSEQUENCE FOR THE APPLICATION

- The eight spaces relied upon are not in the ownership of the management company or of the individual householders, and their owner is able to authorise their use as a matter of property law.
- They are, however, at the opposite end of the estate from the application site. Reaching them requires passage along the whole length of the private estate road, which is owned by Oak Glade Management Limited.
- The right of way permitting that passage was reserved in 2016 for the benefit of the retained land — the block of spaces itself. Whether a right of way granted for the benefit of one parcel may be used to serve development on other land is a question of law on which this review expresses no view, and which is considered further at Chapter 8.
- Condition 9 of the 2014 permission applies to the parking area irrespective of who owns the spaces within it.

An evidential gap

Drawing those threads together, the review records the following as a factual observation about the published evidence rather than as a legal conclusion.

WHAT THE PUBLISHED EVIDENCE DOES NOT APPEAR TO ADDRESS

- The application relies upon eight parking spaces which form part of the parking area created under the 2014 permission, and which Condition 9 of that permission requires to be used and retained exclusively for its designated use.
- The published application material examined for this review does not identify any document explaining the basis on which those spaces may lawfully be used to serve a seventy-bed care home, that use being different from the designated use to which the condition refers.
- Reaching those spaces from the application site requires passage along the private estate road owned by Oak Glade Management Limited. The published material does not identify any document recording the consent of that company, nor does it explain the legal basis on which the right of passage for this purpose is said to exist.
- These are observations about the completeness of the published evidence. They are not assertions that the necessary rights or consents are absent, and the review makes no such assertion.

Both matters are capable of being resolved conclusively by the applicant. Until they are, the parking provision relied upon in the transport case cannot be verified from the published documents.

The ownership certificate

A related procedural matter arises from the ownership position described in Chapters 2 and 6, and is recorded here as a question rather than as a finding.

An application for planning permission must be accompanied by a certificate as to ownership of the land within the application site. Where the applicant is not the sole owner of all of that land, the applicant is required to give notice to every other person who, at the beginning of the period of twenty-one days ending with the date of the application, was an owner of any part of it. An owner for this purpose is the freehold owner or a lessee whose unexpired term is not less than seven years.

Two features of this application engage that requirement. The applicant is not the registered proprietor of the land within which the site falls, that proprietor being Oak Glade Epsom Limited. And the application proposes the use of eight parking spaces within the Oak Glade parking area, the ownership of which is not resolved by the documents examined for this review and may rest with Oak Glade Management Limited or with individual plot owners.

Whether notice was required in respect of any land owned by the management company or by individual residents depends on whether that land falls within the application site boundary. The published location plan carries a revision noted as an update to the site boundary line dated 8 January 2026, and the superseded revision has not been examined for this review.

QUESTIONS FOR THE LOCAL PLANNING AUTHORITY

- Which ownership certificate accompanies the application, and who is identified in it as owner of the land within the application site?
- Does the application site boundary, as shown on the current revision of the location plan, include any land owned by Oak Glade Management Limited or by individual plot owners — whether parking spaces, estate road or verge?
- If so, was notice given to those owners as required, and on what date?
- What change was made to the site boundary line by the revision dated 8 January 2026, and what did

> the superseded revision show?

The review records these as questions because they are capable of being answered conclusively from the application file, and because the answers bear on whether the parking and access arrangements described in the application can be delivered. Representations submitted by the commissioning parties record that no notice was received by Oak Glade Management Limited.

12.7 Community services

The published evidence considers the relationship between future development and community infrastructure, including healthcare, education, open space, recreation and community facilities. Assessment of those matters forms part of the strategic planning context established through the Local Plan and the Infrastructure Delivery Plan.

Two local receptors are relevant here. Stamford Green Primary School and Rosebery School generate significant pedestrian and vehicular movement on the local network at peak times, as recorded in Chapter 8, and the Stamford Green Primary School playing fields adjoin the HOR004 allocation.

12.8 HOR001 — the published infrastructure evidence

The planning application is supported by technical information addressing servicing arrangements, drainage strategy, utility provision, site access, operational infrastructure and supporting engineering works. Those documents provide the technical basis on which infrastructure matters fall to be assessed by the Local Planning Authority and the relevant statutory consultees.

12.9 HOR004 — the infrastructure position

No infrastructure evidence specific to HOR004 has been published, and none could be expected at allocation stage. Three matters are nonetheless capable of being identified now, because they arise from the arrangements described earlier in this chapter rather than from any particular scheme.

- Foul and surface water drainage. Approximately fifty dwellings would require connection to drainage serving an estate whose sewers originate in the institutional development and which, on the evidence examined, may not have been adopted. The 2010 transfer permits consent to connect to be withheld where existing apparatus would be overloaded.
- Water supply. Representations record a documented history of low pressure affecting existing residents. The additional demand of fifty dwellings, taken with that of the proposed care home, is a matter for the statutory undertaker.
- Access and maintenance. Any scheme would draw upon the shared access arrangements described at Chapter 8, with the maintenance consequences described there.

Each is capable of being resolved through the application process. They are recorded here so that they are identified before, rather than after, the principle of development is established.

12.10 What this chapter does not argue

> **THE REGISTERED TITLE EVIDENCE DOES NOT ESTABLISH THAT:**

- the existing infrastructure is incapable of serving further development;
- the necessary rights to connect or to pass are absent;
- private ownership of infrastructure is a planning objection in itself; or
- either proposal should be resisted by reason of the arrangements recorded in the transfers.

What the title evidence does explain is why private estate infrastructure exists here at all, why it remains privately managed, why ownership across the estate is fragmented, and why questions of capacity, maintenance liability and long-term management recur in the representations made about both proposals. That is legitimate planning background, and it is offered as such.

KEY MESSAGES

- A significant part of the infrastructure serving both communities is privately owned and privately maintained.
- Roads, sewers and service media originate in the institutional estate and are shared between successive phases of development.
- The 2010 transfer expressly contemplates that connection may be refused where shared service media would be overloaded.
- Long-term maintenance liability for shared assets falls on the residents' management companies unless alternative arrangements are secured.
- These are matters capable of being addressed through the planning process; the review records them so that they can be.

Chapter 13 Integrated Planning Considerations

CHAPTER SNAPSHOT

Purpose

To draw together the published evidence reviewed in the preceding chapters and to consider how the principal planning considerations interact, without introducing new evidence and without seeking to make the planning judgement for the reader.

Principal questions addressed

- How do the individual planning topics relate to one another at this location?
- What is the strategic context common to both proposals?
- Where does the published evidence sit at different levels of detail, and why?
- What questions remain open on the published material?

Principal evidence reviewed

- The published evidence reviewed in Chapters 2 to 12
- Registered title evidence as described in Chapter 2

13.1 Introduction

Planning decisions are rarely determined by a single issue. Decision-makers are required to consider a range of matters, weighing benefits against identified harm, having regard to national policy, the development plan and other material considerations.

The preceding chapters have reviewed the published evidence topic by topic. This chapter considers how those strands interact. It introduces no new evidence, and it deliberately stops short of striking the balance, which is a matter for the Local Planning Authority in respect of HOR001 and for the Inspector in respect of HOR004.

13.2 The common strategic context

Both proposals occupy land within the Historic Horton Estate and within the Metropolitan Green Belt. Although promoted through different statutory processes, they share a common context characterised by:

- Green Belt designation and proximity to Epsom Common;
- two small established residential communities totalling twenty-eight households;
- a mature landscape framework surviving from the institutional estate;
- a connected ecological network;
- a shared private access road and shared private service media; and
- a documented history of phased disposal from a single institutional holding.

That common context is the reason the two proposals are considered together in this review, notwithstanding that they will be determined separately.

13.3 How the considerations interact

Four interactions emerge from the evidence reviewed.

Green Belt and landscape. Openness at this location is a function not only of the absence of buildings but of the continuity of the surviving landscape framework. Change to that framework therefore bears on Green

Belt purposes as well as on landscape character, and the two cannot readily be assessed in isolation from one another.

Landscape and ecology. The same framework constitutes the ecological network. Its value depends on continuity, with the consequence that effects on habitat connectivity accumulate across parcels in a way that parcel-by-parcel assessment does not fully capture.

Transport and amenity. The amenity baseline in both communities is unusually low precisely because vehicle movement within them is minimal. Transport effects at this location are therefore amenity effects to an unusual degree, and the two topics are more closely coupled here than they would be in a conventional suburban setting.

Infrastructure and delivery. Because the roads and service media are privately owned, shared and inherited, questions of capacity, maintenance liability and construction impact attach to assets outside the control of the statutory undertakers and the highway authority. Those questions are capable of being resolved through the planning process, but they must first be recognised.

FIGURE 13.1

Integrated planning context: which considerations attach to which asset

A schematic of relationships. Positions are diagrammatic and carry no geographic meaning.

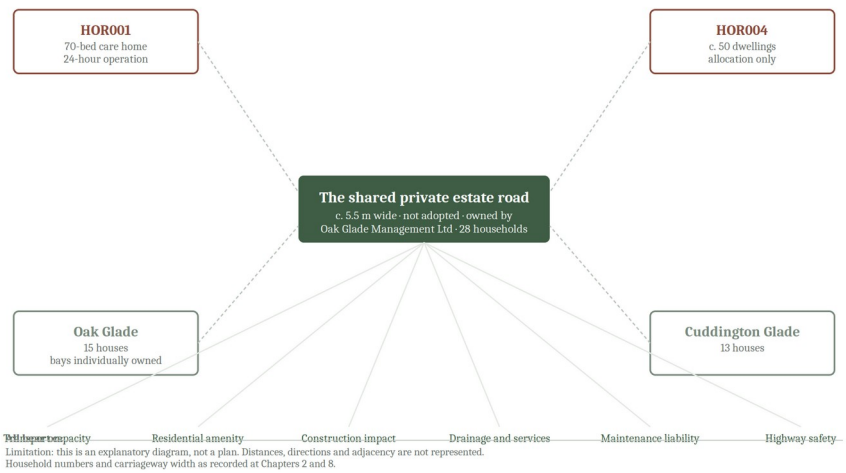


Figure 13.1 — Integrated planning context: which considerations attach to which asset *A schematic of relationships; positions carry no geographic meaning.*

13.4 The asymmetry of the evidence

A recurring feature of this review is that the two proposals are supported by evidence of markedly different specificity.

Topic	HOR001	HOR004
Planning status	Live application 26/00002/FUL	Proposed allocation only
Transport	Transport Statement and Stage 1 Road Safety Audit	Strategic Local Plan evidence
Landscape	Landscape and Visual Impact Assessment and landscape plans	Strategic landscape evidence
Ecology and trees	Site-specific ecological and arboricultural material	Strategic evidence; site characteristics recorded
Amenity	Submitted plans, elevations and sections	No published layout

Topic	HOR001	HOR004
Drainage	Drainage and flood risk information	Strategic evidence

Table 13.1 — Comparative level of published evidence. The difference reflects the different statutory purposes of the two processes.

That asymmetry is proper. It is not a criticism of the Council, and the review does not suggest that HOR004 should be supported by application-level evidence at allocation stage. It does, however, have one consequence that bears directly on the framing question set out at the beginning of this review: the combined effect of the two proposals cannot presently be assessed from the published material to the same standard as the effect of HOR001 alone.

13.5 The contribution of the title evidence, restated

The registered title evidence has been used in this review for a single purpose, and it is worth restating that purpose in one place.

THE CONTRIBUTION OF THE 1998, 2010, 2014 AND 2016 TRANSFERS

- The transfers do not alter the planning policy framework, and they do not bear on the lawfulness or the planning merits of either proposal.
- They provide historical and contextual evidence explaining how the former Horton Hospital estate evolved from a single institutional ownership into a series of interdependent residential communities linked by shared private infrastructure.
- They therefore assist readers in understanding the physical, legal and management context within which both HOR001 and HOR004 fall to be considered as successive stages in the continuing evolution of the Historic Horton Estate.
- In one respect they cut against the case advanced in the representations: development of retained land was expressly contemplated when each disposal was made, and rights of access and connection were expressly reserved for that purpose.
- That point has two limits. A right reserved between private parties is not a planning permission and answers a different question. And the rights reserved were calibrated to the estate as it then stood — contribution to the accessway "according to use", and connection to shared media subject to consent which could be withheld on grounds of capacity. The transfers contemplate development; they contemplate no particular scale of it.

13.6 Matters remaining open on the published evidence

The review records the following seven matters, on which the published evidence appears, at the date of writing, to be incomplete or to require explanation. They are expressed as questions rather than as conclusions, and each is capable of being answered.

1. What has materially changed about HOR001 and HOR004 since December 2024, when the Council concluded that neither demonstrated exceptional circumstances? Specifically, what were the inconsistencies and inaccuracies said to affect the original assessments of these two sites, and what changed as a result?
2. Where is the sequential assessment required by the Inspector at the Matter 4 hearing recorded for these sites, and if HOR001 is neither previously developed nor well served by public transport, which land was given first consideration ahead of it?

3. Where is the combined effect of the approximately eighteen Green Belt releases identified across the Horton corridor assessed as a single question — the effect the Council itself described as the "slow ebbing away of small areas of Green Belt"?
4. Where is the combined transport effect of HOR001 and HOR004 on the shared 5.5-metre private access road assessed? This is the one physical asset both proposals must use, and it is not adopted highway.
5. How would construction damage and accelerated wear to privately owned estate roads and service media be managed and funded, and by whom?
6. How is a three-storey, 70-bed institutional building operating continuously characterised as the "natural rounding off" of existing built form, when a single dwelling on adjoining land of the same designation was refused as inappropriate development in 2015?
7. How is the conclusion that HOR001 presents "no significant environmental constraints" reconciled with its Green Belt designation, its protected trees and its position adjoining Epsom Common?
8. On what basis is the parking provision for a 70-bed 24-hour institution assessed as adequate, given that it comprises twenty on-site spaces together with eight spaces in land owned by a third party and provided for existing residents?

None of these questions presupposes an answer, and none is rhetorical. Each identifies a point at which the published evidence, as examined for this review, does not presently disclose the reasoning that would allow a reader to follow the Council from its evidence to its conclusion.

13.7 What this review does not conclude

For completeness, the review records that it does not conclude that either proposal is unacceptable; that the Council has acted improperly; that the evidence base is inadequate as a whole; or that the transfers prevent development. Each of those would be a conclusion beyond what the published evidence supports, and none is advanced.

KEY MESSAGES

- The principal planning considerations at this location are unusually tightly coupled, because they attach to the same shared physical assets.
- The two proposals are supported by evidence of properly different specificity, with the consequence that their combined effect is less fully evidenced than the effect of either alone.
- The title evidence explains the estate's physical and management context and nothing more.
- Six matters are recorded as remaining open on the published evidence; each is expressed as a question for the decision-maker.

Chapter 14 Conclusions

14.1 Purpose of this review

This Planning Evidence Review has examined the published planning evidence relating to Planning Application 26/00002/FUL (HOR001), the proposed Local Plan allocation HOR004 and the wider Historic Horton Estate.

Drawing on national planning policy, the Council's published Local Plan evidence, the planning application documents, supporting technical assessments and the registered title evidence obtained from HM Land Registry, the review has consolidated a substantial body of dispersed material into a single structured reference. Throughout, the emphasis has remained on explaining the published evidence, distinguishing factual material from observation, and presenting the planning context clearly.

14.2 The Historic Horton Estate

The principal theme emerging from the evidence is that the former Horton Hospital estate continues to function as a coherent planning landscape.

Although extensively redeveloped following the closure of the hospitals, substantial areas of Metropolitan Green Belt, mature woodland and open land remain. Together with the established residential communities that have evolved from the institutional estate, these elements continue to define the character and identity of the area.

The registered title evidence adds a second dimension to that theme. The estate was released not in a single transaction but in stages, over some two decades, and at each stage rights of access and rights to connect into shared services were expressly granted and reserved so that the parts could continue to function as a whole. The physical interdependence of the estate is therefore documented and deliberate rather than incidental.

14.3 The published planning evidence

The Council has published an extensive body of evidence in support of both the emerging Local Plan and the planning application. That evidence includes Green Belt assessments and topic papers, site assessment material, transport studies, landscape and visual assessments, ecological reports, sustainability appraisal, habitats regulations assessment, infrastructure evidence and numerous supporting technical documents.

This review has not sought to replace or reinterpret those documents. It has brought them together within a single framework so that the relationship between the individual technical assessments and the wider planning context can be understood.

14.4 The integration of the evidence

A recurring theme is that the principal planning considerations at this location are closely interconnected. Green Belt policy influences landscape character and openness. The landscape framework carries the ecological network. Transport affects accessibility, servicing and residential amenity. Infrastructure supports both existing communities and any future development — and here, unusually, much of it is privately owned and shared.

Considering these matters collectively provides a broader understanding of the estate than reading the individual technical reports in isolation.

14.5 HOR001 and HOR004

Although the two proposals arise through different statutory processes, the published evidence demonstrates that they share a common geographical, historical and environmental context.

HOR001 is supported by detailed, site-specific technical assessments submitted with a live planning application. HOR004 forms part of the Council's strategic spatial planning process through the emerging Local Plan. The review has distinguished between those processes while recognising that both proposals occupy the same landscape, engage many of the same considerations and would draw upon the same shared access and services.

14.6 The contribution of the title evidence

Version 6 of this review incorporates the registered title evidence for the first time. Its contribution can be stated in a single paragraph.

> **THE CONTRIBUTION OF THE TRANSFERS**
>
> The 1998, 2010, 2014 and 2016 transfer deeds do not alter the planning policy framework, but they provide important historical and contextual evidence explaining how the former Horton Hospital estate evolved from a single institutional ownership into a series of interdependent residential communities linked by shared private infrastructure. They therefore assist readers in understanding the physical, legal and management context within which both HOR001 and HOR004 should be considered as successive stages in the continuing evolution of the Historic Horton Estate.

14.7 The value of this review

The principal contribution of this review is the integration of published planning material into a coherent and accessible whole. By bringing together planning history, ownership history, policy, Green Belt evidence, technical assessments and site-specific documentation, it provides a consolidated reference that assists readers in understanding how the strands of published evidence relate to one another.

It is intended to complement, rather than to replace, the Council's published documents, and to support informed consideration by councillors, planning officers, the Local Plan Inspector, interested parties and members of the public.

14.8 Closing statement

The Historic Horton Estate has evolved continuously for more than a century through successive phases of institutional development, healthcare reform, land disposal, residential regeneration, environmental protection and strategic planning.

The proposals relating to HOR001 and HOR004 represent the latest stage in that continuing evolution. Whatever decisions are ultimately reached through the planning application and the Local Plan processes, they will form part of the long-term story of this distinctive landscape.

It is hoped that this review assists that process by presenting the published evidence in a clear, structured and transparent manner, enabling readers to understand both the individual proposals and the wider context within which they fall to be considered.

Planning decisions are strongest when they are informed not only by individual technical assessments, but by a clear understanding of how those assessments combine to describe the places, communities and landscapes they affect.

Appendix A Schedule of Published Documents Reviewed

The following schedule lists the material reviewed in the preparation of this review, grouped by source. It is not a bibliography of every document published in connection with the Local Plan or the planning application; it records the material examined for the purposes of this review.

National planning policy

- National Planning Policy Framework (current version at the date of this review)
- Planning Practice Guidance — relevant sections, including guidance on Green Belt and on plan-making

Epsom & Ewell Local Plan and evidence base

- Submission Local Plan and Policies Map
- TP02 — Green Belt Topic Paper: Exceptional Circumstances
- COUD_021 — Green Belt Topic Paper Addendum
- Final Green Belt Study Update (2024)
- EEBC Green Belt Technical Note (2023)
- COUD-029 — Additional Sites for Potential Allocation
- COUD_030 — Sustainability Appraisal Report Addendum
- COUD_031 — Habitats Regulations Assessment Addendum
- HD4_1 — Post-Hearing Action: Green Belt Topic Paper
- Site assessment material relating to HOR001 and HOR004, including the assessments published in December 2024
- Infrastructure Delivery Plan
- Local Plan transport, landscape and ecology evidence

Planning Application 26/00002/FUL

- Planning Statement
- Design and Access Statement
- Transport Statement and associated drawings
- Stage 1 Road Safety Audit and designer's response
- Landscape and Visual Impact Assessment
- Landscape Plan and Soft Landscape Plan
- Arboricultural information
- Ecological information and biodiversity net gain material
- Flood Risk Assessment and Drainage Strategy
- Noise and lighting information
- Location Plan, Proposed Block Plan and Site Plan
- All further approved plans and drawings published in connection with the application

Examination and consultation material

- Hearing statement submitted on behalf of Oak Glade Management Limited and Cuddington Glade Management Limited, 2 July 2026

- Representation forms submitted by Oak Glade Management Limited and Cuddington Glade Management Limited, June 2026
- Emerging Evidence on Cumulative Green Belt Change Across the Historic Horton Hospital Landscape — briefing prepared for the Member of Parliament for Epsom & Ewell, July 2026
- Formal objection to Planning Application 26/00002/FUL submitted by Oak Glade Management Limited, 26 January 2026, and addendum of 12 May 2026
- Pre-emptive policy rebuttal, December 2025
- Individual objection material submitted by residents of Oak Glade and Cuddington Glade
- Council pre-application advice in respect of the care home proposal
- Council acknowledgement of consultation and correspondence

Where this review records a matter drawn from representations rather than from the Council's published evidence or the application documents, it says so, and the representation is identified as the source. Figures and assessments contained in representations are the representors' own and have not been independently verified for this review.

Registered title evidence

Scheduled separately at Appendix F.

Appendix B Chronology

A consolidated chronology of the estate is provided at Table 3.1. The following supplementary chronology records the sequence of Local Plan and planning application milestones for ease of reference. Dates are to be confirmed against the Council's published examination timetable at the point of publication.

Stage	Event
Plan preparation	Publication of the Green Belt Study Update and supporting technical evidence
December 2024	Site assessment concluding that neither HOR001 nor HOR004 demonstrates exceptional circumstances
Regulation 19 stage	Publication of the Submission Local Plan and consultation on it
June 2026	Representations submitted by Oak Glade Management Limited and Cuddington Glade Management Limited
2 July 2026	Hearing statement submitted to the Local Plan Examination
Examination	Hearing sessions, post-hearing actions and publication of further evidence
2026	Submission of Planning Application 26/00002/FUL
Pending	Determination of Planning Application 26/00002/FUL
Pending	Inspector's report and adoption of the Local Plan

Appendix C Planning Policy Extracts

Rather than reproducing source documents, this appendix should contain only the short policy extracts most frequently referenced in the review, each accompanied by a full citation so that the reader can consult the original. Extracts should be confined to what is necessary to make the surrounding discussion intelligible.

The extracts to be included are:

- the National Planning Policy Framework paragraphs setting out the fundamental aim and essential characteristics of the Green Belt;
- the paragraphs governing alteration of Green Belt boundaries through plan-making and the demonstration of exceptional circumstances;
- the paragraphs governing development in the Green Belt and the treatment of harm;
- the relevant policies of the emerging Epsom & Ewell Local Plan, including the site allocation policies for HOR001 and HOR004; and
- the relevant saved policies of the adopted development plan.

Extracts should be reproduced under the terms of the Open Government Licence where applicable, with attribution.

Appendix D Glossary

Term	Meaning as used in this review
Accessway	The private access route defined in the Transfer dated 17 June 2010 and shown on the plan annexed to it
Adopted highway	A road maintainable at public expense by the highway authority
Biodiversity Net Gain	The statutory requirement that development delivers a measurable improvement in biodiversity value
Calverton test	The approach to the justification of Green Belt release derived from the judgment in Calverton Parish Council v Nottingham City Council
Estate Roads	As defined in the Transfer dated 16 August 2016: all roads, verges and footpaths, including their lighting, constructed within the Oak Glade estate
Exceptional circumstances	The test that must be satisfied before Green Belt boundaries may be altered through the preparation of a local plan
Green Belt	Land designated as Metropolitan Green Belt, the essential characteristics of which are openness and permanence
Major Developed Site	A defined area of previously developed land within the Green Belt within which redevelopment may be permitted
Material consideration	A consideration relevant to the determination of a planning application
Official copy	A copy of a register or filed document issued by HM Land Registry and admissible in evidence
Openness	The absence of development, assessed in the published evidence through spatial, visual and landscape factors
Previously Developed Land	Land which is or was occupied by a permanent structure, as defined in national policy
Retained Land	Land retained by a transferor on a disposal of part, as defined in the 2010 and 2016 transfers
Service Media	Apparatus for the supply or removal of services, as defined in the 2010 and 2016 transfers
Wheeldon v Burrows	The common law rule as to implied easements on a disposal of part, expressly excluded by the 2010 transfer

Appendix E Index of Figures

Four figures are included in this review. Each is derived from figures, dates or relationships recorded in the sources identified at Appendix A and Appendix F___TMP, and each carries a note of its limitations.

Figure	Title	Chapter	Basis
Figure 3.1	Evolution of the Historic Horton Estate: planning and ownership in parallel	3	Documented dates
Figure 4.2	The Green Belt evidence: what was concluded, and when	4	Published documents and correspondence
Figure 5.1	Cumulative Green Belt change across the historic Horton estate	5	Published hectare figures, drawn to scale
Figure 13.1	Integrated planning context	13	Schematic of relationships

Figures not included

This review does not reproduce mapping. Plans of the Green Belt boundary, the Major Developed Site insets, registered title extents, site layouts, landscape and ecological features, viewpoints and the highway network would each require licensed Ordnance Survey base mapping together with boundary data which is not available from the published sources examined.

Producing such plans from written descriptions alone would risk presenting approximations as surveyed fact, and the review does not do so. Where the extent or position of a feature is material, the text identifies the published plan on which it is shown, so that readers may consult the original.

Should the review be developed further, the following would add most: a plan of the proposed Green Belt releases across the whole estate; a plan of the registered title extents at Oak Glade, showing the land benefiting from the rights reserved in 2016; and a section through the proposed building and the nearest dwellings at Oak Glade. Each would require the base mapping and survey information identified above.

Appendix F Registered Title Evidence

This appendix schedules the registered title material examined for this review and summarises the chain of title it evidences. It is descriptive only. Nothing in this appendix constitutes legal advice, and no view is expressed on the construction, effect or enforceability of any right, covenant or reservation referred to.

Documents examined

Document	Reference	Nature
Official copy of the register	SY838750	Land at Oak Glade, Epsom — estate roads, gardens and infrastructure
Official copy of the register	SY818290	1 to 5 (inclusive), Oak Glade, Epsom
Register summary	SY788683	Land at Cuddington Glade, Christ Church Road, Epsom
Register and title plan	SY677003	Parent title from which the Cuddington Glade land was transferred
Official copy of filed transfer	30 March 1998	Secretary of State for Health to Surrey Heartlands NHS Trust
Official copy of filed transfer	17 June 2010	Surrey and Borders Partnership NHS Foundation Trust to Countrywide Design (Epsom) Limited
Filed transfer referred to in the register	14 February 2014	Surrey and Borders Partnership NHS Foundation Trust to Java Asset Management Limited
Official copy of filed transfer	16 August 2016	Java Asset Management Limited to Oak Glade Management Limited
HM Land Registry correspondence	31 January 2017	Letter recording completion of registration and the land excluded from the new title
Official copy of the register	SY818290	Current register accessed 14 July 2026, recording the transfer of 11 April 2024
Title plans	SY838750, SY818290, SY788683	Official and non-official copies of the filed title plans
Transfer plan (Freeholder Plan)	16 August 2016	Plan annexed to the 2016 transfer, showing plots, estate roads and numbered parking spaces
Development information package	August 2015	Issued to prospective purchasers by the vendor's solicitors, recording the intended management and ownership arrangements
Plot sale documentation	3 May 2016	Sale agreement for one plot, recording the sale of the house together with two numbered parking spaces
Plot transfer extract	Undated extract	Covenant and reservation provisions from the transfer of one plot

The chain of title in summary

The following summary records what the documents examined show. Registers are subject to amendment and pending applications are not shown; the position stated is as at July 2026.

30 March 1998 — Secretary of State for Health to Surrey Heartlands NHS Trust

- Transfer of the hospital estate land within the National Health Service.
- Contains restrictive covenants and provisions as to light and air.
- The Fourth Schedule contains covenants by the transferee, including: an obligation to keep the conduits running through the property in reasonable repair; a covenant not to permit vehicles under its control to stand or park on the accessways, nor to obstruct the free passage of pedestrians or vehicles over them; and a covenant not to lay further conduits or make connections without the transferor's prior written consent, which may be refused where the conduits or the public systems serving them may be inadequate to bear the additional load, allowance being made for the likely requirements of the retained land when fully developed.
- Referred to in the charges registers of the successor titles; copy filed under SY677003.
- A note against the register entries records that the matters contained in the third schedule do not affect the land in titles SY838750 and SY788683.

8 April 2004 — Surrey Oaklands NHS Trust to Sichere Building Services Limited

- Transfer of Manor Lodge, with reciprocal rights granted and reserved.
- Copy filed under SY729326.

17 June 2010 — Surrey and Borders Partnership NHS Foundation Trust to Countrywide Design (Epsom) Limited

- Transfer of land at Cuddington Glade, Christ Church Road, Epsom, out of title SY677003, for a consideration of £2,700,000.
- Defines the "Retained Land" as that part of SY677003 excluding the property transferred, and defines an "Accessway", "Services" and "Service Media".
- Grants for the benefit of the land sold: a right of way over the Accessway until adoption, in common with the transferor, subject to payment of a fair and proper proportion according to use of the costs of repair, maintenance, replacement, renewal, cleaning and lighting; a right of support; rights to connect to and use existing service media and to lay new service media beneath the Accessway, subject to consent and to proportionate contribution; rights of access for repair; and the benefit of the rights granted by the 1998 transfer so far as the transferor could grant them.
- Reserves for the benefit of the Retained Land: a right of support; an express right to build, rebuild, extend or alter buildings notwithstanding any interruption to light and air, with no right to light to be acquired for eighty years; rights to connect to and use service media on the land sold; rights of access for repair; and a right to enter to read a sub-meter.
- Imposes restrictive covenants on the transferee not to obstruct the Accessway and not to do anything that would interfere with or delay the development of the Retained Land for any lawful purpose, and a covenant by the transferor not to obstruct the Accessway.
- Excludes section 62 of the Law of Property Act 1925 and the rule in Wheeldon v Burrows.
- Copy filed under SY788683; referred to in the property register of SY838750 as affecting land adjoining its northern boundary.

14 February 2014 — Surrey and Borders Partnership NHS Foundation Trust to Java Asset Management Limited

- Transfer of the Oak Glade land out of National Health Service ownership.
- Contains restrictive covenants and excludes the operation of section 62 of the Law of Property Act 1925.
- Copy filed under SY818290.

16 August 2016 — Java Asset Management Limited to Oak Glade Management Limited

- Transfer of land at Oak Glade, Epsom out of title SY818290, creating title SY838750; registered 22 August 2016; value stated as at 16 August 2016 of £150,000.
- Defines the "Estate", "Estate Roads" (all roads, verges and footpaths, including their lighting, constructed within the Estate), "Estate Gardens", "Estate Sewers" (surface water and foul sewers intended to become public sewers), "Existing Service Media", "Retained Land" and "Roadway".
- Names Oak Glade Management Limited (company number 9742110) as the Management Company.
- Reserves for the benefit of the Retained Land a right of way, with or without vehicles, over and along the Estate Roads and the Roadway, and the right to use and connect into any Existing Service Media on the Estate.
- Registered with title absolute; proprietor Oak Glade Management Limited.

11 April 2024 — transfer of title SY818290

- Transfer of title SY818290 to Oak Glade Epsom Limited (company number 15517601, incorporated 23 February 2024), at an address given on the register as Montreaux House, The Hythe, Staines-upon-Thames.
- The price stated to have been paid was £1.
- SY818290 comprises the land extending south and east of Oak Glade towards Christ Church Road, within which the HOR001 site falls.
- The property register of that title records that the land tinted pink on the title plan has the benefit of the legal easements reserved by the 2016 transfer.
- The transfer to the proprietor contains a covenant to observe and perform the covenants referred to in the register and of indemnity in respect of them.

31 January 2017 — HM Land Registry correspondence

- Records completion of the registration of the 2016 transfer.
- Records that part of the land edged blue on the transfer plan fell outside the transferor's title and was excluded from the new title.
- Records that plots previously within SY818290 which had been sold off were likewise excluded.
- Records that the area described as the "Retained Land" was not included in the new title, as appeared to be the intention of the deed.

Register entries of continuing relevance

The register for title SY838750 records that the estate roads are subject to rights of way granted by transfers of adjoining land forming part of the Oak Glade estate; that the estate footpaths are subject to rights of way on foot; that the estate gardens are subject to rights of user; that the land is subject to rights of drainage and to rights in respect of the supply of water, gas, electricity and other services granted by transfers of estate land; and that rights of entry for inspection and maintenance are reserved over adjoining estate land.

Matters previously requiring verification

Earlier versions of this review recorded a number of matters as requiring verification. The position on each is now as follows.

Matter	Position
A covenant that no trade or business is permitted, said to appear in the charges register of title SY838750	The citation was inaccurate: the entry referred to concerns rights of way. A covenant in those terms does appear in the transfer of an individual plot, given for the benefit of the estate and every other estate landowner. It is subject to a reserved power to vary and release, the terms of which have not been examined.
Extent of the land benefiting from the rights reserved by the 2016 transfer	Resolved. The land is identified as edged red on the transfer plan and brown-tinted on the plan issued by HM Land Registry on 31 January 2017: a block of parking spaces of the order of twenty metres by eight metres at the northern edge of the estate. Measurements should be confirmed from an official copy.
Condition of the 2014 permission relating to the parking area	Resolved. Condition 9 requires that the parking area be used and retained exclusively for its designated use, and permits a maximum of twenty-six cars. Set out in full at Chapter 12.
Ownership of the parking spaces	Resolved. The spaces were sold with the individual houses and are held as individual freehold parcels. A block at the northern edge was retained and is understood to be owned by Oak Glade Epsom Limited.
Title SY837681	Resolved. Land adjoining Manor Lodge, in private individual ownership; not connected to either proposal.
The Deed dated 29 September 2023 affecting an individual plot	Examined. It varies the plot transfer solely to confirm that no rentcharge is created and to exclude the remedies under section 121 of the Law of Property Act 1925. It has no bearing on the matters considered in this review.

Table G.1 — Matters previously requiring verification, and their present position.

One matter remains outstanding: the terms of the power reserved to the transferor to vary and release the covenants contained in the individual plot transfers. That power is referred to in the covenant clause of the plot transfer examined, and its terms should be obtained before the covenant is relied upon.

Limitations of this appendix

LIMITATIONS

- The summary above records what the documents examined state. It is not a legal analysis and expresses no view on construction, effect, priority or enforceability.
- Register entries are subject to amendment. Pending applications are not shown on the copies examined.
- Filed title plans show general boundaries only and are not evidence of the precise line of any boundary.
- Where a document has been read from a scanned copy, the summary reflects the text as legible on that copy.
- Readers requiring certainty as to any matter recorded here should obtain current official copies and take their own legal advice.

About this Review

This Planning Evidence Review has been prepared on behalf of Oak Glade Management Limited and Cuddington Glade Management Limited, representing the twenty-eight households of the Oak Glade and Cuddington Glade communities.

It is a review of published planning evidence, supported by official copies of registered title obtained from HM Land Registry. It does not constitute legal or planning advice, and it does not seek to determine the outcome of any planning application or Local Plan allocation.

Field	Detail
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Correspondence	Julian Downing — juliandowning@gmail.com
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Comments and corrections are welcomed and will be reflected in any subsequent version.